

REQUEST FOR QUOTATION (THIS IS NOT AN ORDER)			THIS RFQ ☒ IS ☐ IS NOT A SMALL BUSINESS SET- ASIDE			PAGE OF PAGES 1 59	
1. REQUEST NO. 12363N26Q4108		2. DATE ISSUED 4/17/2026		3. REQUISITION/PURCHASE REQUEST NO.		4. CERT. FOR NAT.DEF. UNDER BDSA REG. 2 ☐ AND/OR DMS REG. 1	
5a. ISSUED BY National Stewardship Team IRSC 1400 Independence Ave. SW MS-1138 Washington DC 20250-1138; Email Return: cynthia.horwitz@usda.gov				6. DELIVER BY (Date) Date of Award through 11/30/2026			
5b. FOR INFORMATION:				7. DELIVERY		FOB DESTINATION	
NAME				☒		OTHER (See Schedule)	
Cynthia Horwitz				cynthia.horwitz@usda.gov		9. DESTINATION	
8. TO:				a. NAME OF CONSIGNEE Ottawa National Forest			
a. NAME				b. STREET ADDRESS			
c. STREET ADDRESS				c. CITY			
d. CITY				e. STATE		f. ZIP CODE	
d. STATE				e. ZIP CODE			
10. PLEASE FURNISH QUOTATIONS TO THE ISSUING OFFICE IN BLOCK 5a ON OR BEFORE 5/14/2026 at 11:00 am Central Time				IMPORTANT: This is a request for information, and quotations furnished are not offers. If you are unable to quote, please so indicate on this form and return it to the address in BLOCK 5a. This request does not commit the Government to pay any costs incurred in the preparation of the submission of this quotation or to contract for supplies or services. Supplies are of domestic origin unless otherwise indicated by quoter. Any representations and/or certifications attached to this Request for Quotations must be completed by the quoter.			
11. SCHEDULE (Include applicable Federal, State and local taxes)							
ITEM NO. (a)	SUPPLIES/SERVICES (b)			QUANTITY (c)	UNIT (d)	UNIT PRICE (e)	AMOUNT (f)
	National Forest Region 9 Timber Mark & Cruise BPA Call Order: 12363N26Q4108 <u>Please place your price quotation in the Schedule of Items.</u> <u>Furnishing Quotation:</u> Complete Standard Form 18, the Schedule of Items, and provide a response to the other Evaluation Criteria identified herein. Return to the email address shown in Block 5a. Please place *Solicitation No. 12363N26Q4108 in email Subject.						
12. DISCOUNT FOR PROMPT PAYMENT ☐				a. 10 CALENDAR DAYS (%)	b. 20 CALENDAR DAYS (%)	c. 30 CALENDAR DAYS (%)	d. CALENDAR DAYS NUMBER PERCENTAGE
NOTE: Additional provisions and representations ☐ are ☒ are not attached.							
13. NAME AND ADDRESS OF QUOTER				14. SIGNATURE OF PERSON AUTHORIZED TO SIGN QUOTATION		15. DATE OF QUOTATION	
a. NAME OF QUOTER							
b. STREET ADDRESS				16. SIGNER			
c. COUNTY				a. NAME (Type or print)		b. TELEPHONE	
d. CITY				c. TITLE (Type or Print)		AREA CODE	
e. STATE				f. ZIP CODE		NUMBER	

Schedule of Items

Item No.	Unit Name	Estimated Quantity	Unit of Measure	Unit Price	Total
1. Bobcat Stewardship T.S. (Estimated Acres) – Contract Term Date: 11/30/2026					
1-a	Selection [PUs 02-07, 12-14]	414	acre	\$ _____	\$ _____
1-b	Thinning [10]	18	acre	\$ _____	\$ _____
1-c	Clear Cut 100% Count [PUs 01,08-09, & 11]	122	acre	\$ _____	\$ _____
Total Price Quote:					\$ _____

1. **Description of Work:** This marking and cruising contract is for 554 acres in Selection, Clearcut, & Thinning harvest units within a single Sale Area. The Sample Tree Cruising Method (STR) will be applied to all included payment units. The requirements outlined in the parent BPA award are specific to this Call, and supplemental to the requirements of the parent agreement. The specifications in this Call may supersede or replace contract specifications in the parent contract, when allowed by the parent contract agreement.
2. **Project Location.** Bobcat Stewardship is located within Gogebic County on the Ottawa National Forest. T46N R42W, Sections 21-22, 27-28, & 34. The sale can be accessed from the following directions:
 - a. From Watersmeet, Travel west on US-2 for 25.6 miles. Turn south onto Hwy 64 south and travel 0.3 miles. You will have reached the center of the sale with the sale being on the north and south side of Hwy 64 south.
3. **Government-Furnished Property.**
 - a. Tree marking paint
 - b. R9 Timber Sale Cruise Tally Card & Instructions Sheet
 - c. Marking guides that include: cruise plan, marking prescriptions, designation method, and resource maps.
4. **BPA Call Specifications.** Refer to Attachment 01: Bobcat Stewardship Statement of Work and Attachment 03: Bobcat Stewardship Section C for detailed specifications for each item.
 - a. Bobcat Stewardship SOW – Cruise Design, Marking Instructions, Prescriptions, & Sale Map
 - b. Bobcat Stewardship Section C
5. **Performance Requirements Summary.**
 - a. The Contractor shall furnish all labor, materials, equipment, tools, instruments, supplies, transportation, professional services, personnel, and supervision **EXCEPT** that which is designated in the Government Furnished Property clause to perform the Statement of Work/Specifications referenced in this contract. Additionally, the contractor shall abide by the Ottawa National Forest's Timber Theft Prevention plan (TTPP) – including, but not limited to, reconciling ALL paint (both empty & full paint cans) at the appropriate Forest Service office within 10 business days of issuance.
 - b. The Contractor shall GPS the location of ALL sample trees and provide a digital copy of these GPS locations on a payment unit-by-payment unit basis in a format that is useable by Forest Service personnel. GPS locations are required to be submitted to the Contracting Officer's Representative (COR) when the cruise cards are submitted for the completed unit.

6. BPA Call Contract Time and Required Rate of Progress.

- a. **Estimated Start Work Date:** Upon Award of Contract.
- b. **Summer and/or Winter Project:** Work may occur in either summer and/or winter months. Work completed in CTM units is subject to weather conditions and may be halted temporarily due to snow conditions if stump marks are not able to be adequately applied.
- c. **Contract Time:** The Contractor shall complete work on this Call Order in accordance with the following...
 - i. Bobcat Stewardship Contract Due Date: 11/30/2026

7. Attachments.

- a. Attachment 01: Bobcat Stewardship Statement of Work (Cruise Design, Marking Instructions, & Silviculture Prescriptions)
- b. Attachment 02: Bobcat Stewardship TS RFCA Map
- c. Attachment 03: Bobcat Stewardship Section C
- d. Attachment 04: Ottawa National Forest's Timber Theft Prevention plan (TTPP)
- e. Attachment 05: Wage Determination

8. BPA Call Evaluation Criteria – Instructions to Quoters.

EVALUATION FACTORS FOR AWARD

FAR 52.252-1 Solicitation Provisions Incorporated by Reference (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/browse/index/far> (FAR clauses begin with 52)

Department of Agriculture Acquisition Regulation (AGAR) Clauses: <https://www.acquisition.gov/agar> (AGAR clauses begin with 452)

Deviations to provisions may be viewed at: <https://www.dm.usda.gov/procurement/policy/FARClassDeviations.htm>

FAR 52.216-1 Type of Contract. (APR 1984)

The Government contemplates award of a **firm fixed price** contract resulting from this solicitation.

Technical Package addressing the following evaluation factors and subfactors:

1. **Past Performance.** Determined by FedDataCheck and CPARS databases. Formal submission to address this factor has been completed under FAR 17.2 Options renewal and modification issuance. Source Selection Authority shall submit all Vendor Unique Entity Identifiers to FedDataCheck and CPARS to form a basis for responsibility and prior past performance. Each file shall be kept under vendor name at time of selection for an accurate and complete document of record.
2. **Price.** Price will be evaluated on the basis of reasonableness and total cost to the Government and shall be used to determine the comprehension and evaluation of the understanding of the work to be completed.
 - a. Quoters shall submit their quote(s) by submitting the following:
 - i. 1 copy of completed, signed SF-18 Request for Quotations form;
 - ii. 1 copy of completed Schedule of Items; and
 - iii. Quoter response(s) to technical (non-price) evaluation criteria.

- b. Technical (non-price) evaluation criteria instructions. Quoters shall submit a response to the following non-price evaluation factor:
 - i. Contract Time and Schedule.
 - 1. Quoters shall submit a proposal concerning how they intend to conform to the contract requirements concerning contract time and schedule.
 - 2. Quoters may submit an alternate proposal that contains more specific and restrictive contract time requirements that the Contractor is willing to commit to as a condition of Call Order Award. For example, Quoters may consider proposing elements such as:
 - a. Specific start work date(s), completion dates, or performance timeframes for various phases of the work;
 - b. Specific minimum production rates that the Contractor is willing to commit to;
 - c. Proposed sequence of project execution; and/or
 - d. Other specific contract time commitments that the Contractor is willing to commit to.

9. Evaluation Criteria and Award Statement.

- a. **Technical / Non-Price Evaluation Factors.**
 - i. *Contract Time and Schedule. The Government will evaluate the Quoter's proposal(s) concerning how they intend to conform to the contract time requirements of the Call Order. A Quoter response containing details that convincingly demonstrate to the Government that the Quoter will complete the Call Order within the minimum contract time requirements is highly desirable and will have a positive effect on the evaluation. Quoter proposals that propose completing all or part of the work faster than required by the Call Order as presented will be considered by the Government, and the ratings of such proposals will depend on the nature of the proposal and its anticipated benefit to the Government.*
- b. **Price Quote.** The Government will evaluate the Quoter's proposed price(s) for price reasonableness.
- c. **Award Statement.** Award will be made to the Quoter(s) whose response(s) represent the best value to the Government, *technical and* price factors considered. Evaluation factors other than cost or price, when combined, are approximately equal to cost or price in the award decision(s). The critical factor in making any price/technical trade-offs is not the spread between the technical ratings, but rather the significance of that difference. The significance of the difference in ratings will be determined on the basis of what that difference is and what it would cost the government to take advantage of it. Award may not necessarily be made for technical capabilities that would appear to exceed those needed for fulfilling the requirements of this contract. The Government reserves the right to make price/technical trade-offs that are in the best interest and advantageous to the Government.

Quotations should contain the quoter's best technical and price terms. The Contracting Officer may reject any or all quotations. The Contracting Officer may issue a call order to other than the quoter with the lowest priced quotation. It is the Government's intent to award without holding discussions. Technical Packages should be submitted initially on the most favorable terms, from a price and technical standpoint, which the quoter can submit to the Government. After the evaluation of quotations, the Contracting Officer may negotiate final terms with one or more quoters of the Government's choice before issuing any order. The Contracting Officer will not negotiate with any quoters other than those of the Government's choice and will not use the formal source selection procedures described in FAR 13. The government will evaluate information based on the following evaluation criteria.

The Government may reject any or all quotes if such action is determined to be in the best interest of the Government.

[illegible]

Sale Number: 21034

Estimated Sale Value: \$140,000

Estimated CV Ranges: 17-47%

Maximum Sampling Error: 10%

Based on Cruise Data: Pre-Cruise Plots

Cruise Methods: Sample Tree (STR)

[Reference attached Minimum Tree and Piece Utilization Standards, dated 11/02/2015]

[Total Sale Acres = 555 Acres including 1 acre ROW)]

Bobcat Payment Unit & Acreage Summary Table

P.U. #	Estimated Acres	Final Acres	Strata	Marking Method	Species
P.U. 01	42		1	DxSpd*	100% Count
P.U. 02	42		1	CTM	All Species
P.U. 03	67		1	CTM	All Species
P.U. 04	77		1	CTM	All Species
P.U. 05	84		1	CTM	All Species
P.U. 06	57		1	CTM	All Species
P.U. 07	32		1	CTM	All Species
P.U. 08	39		1	DxSpd*	100% Count
P.U. 09	14		1	DxSpd*	100% Count
P.U. 10	18		1	CTM	All Species
P.U. 11	27		1	DxSpd*	100% Count
P.U. 12	31		1	CTM	All Species
P.U. 13	16		1	CTM	All Species
P.U. 14	08		1	CTM	All Species
P.U. 15 R.O.W		(01) #dummy#	1	CTM (USFS)	All Species

*** In PU's 01, 08, 09, & 11, all Oak, Elm, Cedar, Hemlock, White Pine, Red Pine, Paper Birch, Yellow Birch, Black Cherry and ANY orange-banded trees will be retained.**

STRATA 1: (CTM)**Single-Tree Selection Payment Units: 02-07, 12-14 (414 Acres).****Red Pine Thinning Payment Unit: 10 (18 Acres).****100% Count Clearcut Payment Units: 01, 08, 09, & 11 (122 Acres).****Payment Unit 15 (R.O.W.) (1 acre) will be marked and cruised by USFS.**

Sample Group	Species/Product (Unit)	DBH Range	Sample Interval
HS	Small Hardwood/Pulpwood (02)	5.0"-10.99"	1:500
HL	Large Hardwood/Pulpwood (02)	11.0"+	1:100
SS	Small Sugar Maple/Sawtimber (01)	11.0"-14.99"	1:75
SL	Large Sugar Maple/Sawtimber (01)	15.0"+	1:25
OS	Small Other Hardwood/Sawtimber (01) <i>[includes Red Maple, Basswood, Black Cherry, Yellow Birch, White Birch, & Red Oak]</i>	11.0"-14.99"	1:50
OL	Large Other Hardwood/Sawtimber (01) <i>[includes Red Maple, Basswood, Black Cherry, Yellow Birch, White Birch, & Red Oak]</i>	15.0"+	1:25
FP	Ash/Pulpwood (02) <i>[includes Black Ash & White Ash]</i>	5.0"+	1:50
FW	Ash/Sawtimber (01) <i>[includes Black Ash & White Ash]</i>	11.0"+	1:25
AS	Small Aspen/Pulpwood (02)	5.0"-11.99"	1:200
AL	Large Aspen/Pulpwood (02)	12.0"+	1:100
CS	Small Mixed Conifer/Pulpwood (02) <i>[includes Balsam Fir, Tamarack, Cedar, Hemlock, White Pine, Scots Pine, White Spruce, Black Spruce, & Norway Spruce]</i>	5.0"-14.99"	1:150
CL	Large Mixed Conifer/Pulpwood (02) <i>[includes Balsam Fir, Tamarack, Cedar, Hemlock, Scots Pine, White Spruce, Black Spruce, & Norway Spruce]</i>	15.0"+	1:50
PP	Pine/Pulpwood (02) <i>[includes Red Pine & Jack Pine]</i>	5.0"+	1:50
PS	Small Pine/Sawtimber (01) <i>[includes Red Pine & White Pine]</i>	9.0"-12.99"	1:100
PL	Large Pine/Sawtimber (01) <i>[includes Red Pine & White Pine]</i>	13.0+	1:25

Note: Cruise all Aspen, Balsam Fir, Spruce, & Jack Pine as pulpwood.

Marking Instructions

Hardwood Selection and Red Pine Thinning/Sample Tree Cruising (STR):

Payment Units: 02-07, 10, 12-14 (432 Acres).

ALL merchantable trees to be removed from these Payment Units require two paint marks at DBH on opposite sides of the tree *AND* a corresponding stump mark (see specific Marking Instructions for these Payment Units). Cruise marked trees using the Sample Groups and Sample Intervals above.

A random start should be used for each sample group at the start of marking in each payment unit. Select a random interval that is less than the required sample interval for the first tally in each sample group, thereafter, sample at the specified sample interval.

Maintain an accurate tree count by payment unit for each sample group. Original field records used for tracking tree counts must be with the tally cards or data recorder sheets when each unit is completed. Do not recopy field notes of tree counts or tally cards.

Clearcut/Sample Tree Cruising (STR, 100% Count):

Payment Units: 01, 08, 09, & 11 (122 Acres).

ALL merchantable trees within these Payment Units are designated for removal EXCEPT ***Oak, Elm, Cedar, Hemlock, Red Pine, & White Pine, Paper Birch, Yellow Birch, Black Cherry*** (which are designated retain tree species) AND ***Leave Trees*** (LTs). Merchantable trees (*except Oak, Elm, Cedar, Hemlock, Red Pine, White Pine, Birch (Paper & Yellow), Black Cherry*) to be removed from these Payment Units only require a paint mark at DBH to verify the tree has been counted; a stump mark is *not* required. Designated retain species (*Oak, Elm, Cedar, Hemlock, Red Pine, White Pine, & Birch (Yellow & Paper), Black Cherry*) require a paint mark at DBH AND at the stump *only* when chosen for removal (operability, disease/insect, or other conditions that may be described in the Marking Guides). Any designated retain trees marked with Cut Tree designation will be documented. **Any and all LTs will be marked by USFS.** LTs are to be marked with a single orange band at DBH and a corresponding orange stump mark.

As stated in the “REMARKS” and “MARKING GUIDE” section, no lone Elm or Oak are to be left. LTs will need to be marked around the lone oak or elm, if there is not a designated retain species adjacent to the elm/oak. LTs may also include healthy groups of hardwoods as stated in the Marking Guides. All banded LTs are to be counted and recorded by species and by payment unit during the cruise, preferably with provided Leave Tree Form and turned in with Tally Cards for each payment unit (see specific Marking Instructions for these Payment Units). Cruise marked trees using the Sample Groups and Sample Intervals above.

Right-of-Way Clearing (USFS mark)/Sample Tree Cruising (STR): Payment Unit 15 (1 acre)

ALL merchantable trees to be removed from this Payment Unit require paint marks at DBH on opposite sides of the tree *AND* a corresponding stump mark. Cruise marked trees using the Sample Groups and Sample Intervals above.

NOTE: Refer to Marking Guides for specific marking instructions for this Payment Unit.

** USFS personnel will be marking Payment Unit 15 - road R.O.W. at a later date.*

NOTE: Government furnished tree marking paint (TMP) will be issued or returned by appointment only, at the WATERSMEET RANGER DISTRICT OFFICE. The primary point of contact for all TMP transactions will be the paint custodian. This person will be identified at the pre-work meeting. BLUE paint has been designated for this sale.

Cruise Design Prepared by: Hayley Jardeen Forestry Technician Date: 02/19/2026
Final Acres Updated by: Hayley Jardeen, Forestry Technician Date: 02/19/2026

Cruise Design Reviewed by: Brandon Pertile, Silviculture Technician Date: 02/19/2026
Cruise Design Reviewed & Updated by: Hayley Jardeen, Forestry Technician Date: 02/19/2026

Marking Contract Narrative by: _____ Date: _____

Cruise Design & Marking Instructions Approved by: Jesse Cox Date: 03/13/26

MINIMUM TREE AND PIECE UTILIZATION STANDARDS (11/02/2015 revision)

		Minimum Tree Specifications	Minimum Piece Specifications		
SPECIES	PRODUCT	DBH (inches)	Length (feet)	DIB (inches)	Minimum Net Scale in % of Gross
Hardwoods (except aspen)	Sawlogs	11.0	8	9.6-11.5	95% ^{1/}
Hardwoods	Sawlogs	11.0	8	11.6+	50% ^{1/}
Softwood	Sawlogs	9.0	8	7.6	40
All Species	Pulpwood	5.0	8	4.0	70 and reasonably straight ^{2/}

^{1/} In Timber Sale Contracts, all hardwood sawlogs will use 50% minimum net scale in gross %, due to limitations in TIM. Cruising will use 95% minimum net scale for small diameter logs (9.6 – 11.5 DIB).

^{2/} Seventy percent applies to rot, voids, and char. Mechanical type defects such as sweep, crook, spider heart, and ring shake will not be considered.

Reasonably straight - When the true line of a minimum length piece does not deviate more than ½ the inside diameter of the small and plus two inches from a straight line drawn between the centers of the ends of a piece.

The maximum deflection allowed is what will fit in a 20-inch cylinder.

A minimum tree must include at least one piece that meets minimum specifications.

**** Product heights are now measured to the nearest foot. All heights are measured in feet from the ground on the high side of the stump.**

- 1. Conifers – measure total height (to the tip) in feet and the cruise program will calculate the 4” cut-off.**
- 2. Hardwoods (includes Aspen) – measure the height in feet to the 4” top.**
- 3. Sawtimber – cut-off point or “stoppers” will follow our regular practices. Measure sawtimber height in feet. Secondary product height will be measured as described in item 1 or 2 depending on the species.**
- 4. Default dib’s are already built into the equations;**
pulpwood = 4.0”
sawtimber = 9.6” (hardwood)
= 7.6” (mixed conifers, pine)
- 5. On trees with a broken, dead, or deformed top, record the height to the point where the 4” top or the tip would have been if the tree were still growing normally, then record defect to account for the missing volume.**

OTTAWA NATIONAL FOREST SILVICULTURAL PRESCRIPTION / MARKING GUIDES

NEPA DECISION DOCUMENT: Grosbeck	TIMBER SALE: Bobcat	PU: 1, 8, 9, 11
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Ranger District	Comp-Stand	MA	LTA	ELTP	Habitat Type	Cover Type	LSC	Year of Origin	Size Density	SI	BA
02	162-07	2.1	11	417	TTS	95	840	1925	5	86	120
02	178-39	2.1	9/11	423A	TMC	91	500	1935	8	31	130
02	178-57	2.1	9	420C	ATD	11	500	1967	5	42	110
02	178-15	2.1	9/11	430D	ATD	91	500	1966	6	83	140

STAND DESCRIPTION

These stands are dominated with aspen throughout and also includes scattered amounts of maple. Occasional large diameter hemlock are also present within the stands. Aspen diameter's will vary but generally around 8-12" DBH. A fair amount of maple and balsam fir is present within the midstory, with minor amounts of black cherry. The understory can be dense with maple, balsam fir, cherry and hazel brush. There are areas of lower elevation/wet areas that should be avoided while marking.

DESIRED CONDITION

An even-aged aspen stand that is growing vigorously and free of competing vegetation. Long lived conifer species will be present but subordinate to the dominant aspen forest type. Accept mixed hardwood species in areas where aspen fails. Maintain small, dense patches of sapling-sized balsam fir, spruce, and hemlock when practicable. Patches should not exceed 20 percent of the unit acreage.

SHORT AND LONG TERM OBJECTIVES

- Apply silvicultural treatments to regenerate and restore a healthy even-aged aspen/birch stands.
- Retain remnant long-lived conifer that are healthy and tolerate the changing environment.
- Accept that native pathogens occur in retained trees to provide unique habitat niches for cavity nesting birds, insects, and mammals.
- Attention is given to maintaining ecological processes and functions in and around riparian areas where they occur in the sale area.
- Acceptable stocking would achieve approximately 3200 seedlings per acre for native species.

REMARKS

There are scattered, small, poorly drained pockets, seeps, steep slopes, perched water tables, or shallow bedrock areas; do not designate any trees for removal in these areas.

100% of spruce and balsam volume should be considered due to signs of spruce decline. 15% of hardwood volume should be considered salvage due to overstocked conditions. 40% of aspen volume should be considered salvage due to age. All other contract groups follow collection rate letter dated 1/27/2025.

NEPA DECISION DOCUMENT: Grosbeck	TIMBER SALE: Bobcat	PU: 1, 8, 9, 11
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MARKING GUIDE:

Name of Treatment - 4117 (Clearcut w/ Reserves)	Residual BA/Ac – See below	Acres – See RFCA Map
The resultant stand appearance should have most acres having 0-10% canopy cover. This will ensure adequate sunlight to warm the ground to encourage suckering and provide a long-term free to grow condition for long term establishment of aspen. • Don't cut species such as hemlock, white pine, red pine, cedar, oak, birch (paper & yellow), black cherry, and elm species unless necessary to facilitate timber harvest operations. The oak and elm need to have adjacent trees retained to maintain the micro site surrounding the targeted reserve tree, this may include high risk aspen.		

DESIGN CRITERIA AND MITIGATION MEASURES

Highlighted Design Criteria, see NEPA for all the criteria
• If any stick nests are found (A1) the wildlife biologist should be consulted. • Reserve snags and den trees according to Forest Plan guidelines (p. 2-32); focus on retaining trees with features beneficial to the NLEB such as shaggy bark and cavities. • If any archaeological sites are located during layout or implementation the Archaeologist should be consulted. • Aspen stands with an objective to regenerate aspen with less than 30 ft²/acre of aspen basal area, harvesting will be restricted to the dormant season December 15 through March 15. • Within harvest units with an objective to regenerate aspen (including aspen inclusions within non-clearcut units), harvesting operations and site preparation shall maintain small, dense patches of sapling-sized balsam fir, spruce, hemlock, or other conifer species when practicable.

POST HARVEST TREATMENTS

FACTS Code	Name of Treatment	Prescription
4493	Site Preparation for Naturals	Remove all residual sub-merchantable material except some patches of low to the ground conifer and retain species noted above
4341	Stocking Survey	Survey to ensure adequate regeneration of 3200 TPA on 40% 1/1000 th ac plots. Evaluate diversity planting opportunities
4341	Stocking Survey	Survey to ensure adequate regeneration of 3200 TPA on 40 % 1/1000 th ac plots
4381	Certification for Naturals w S/P	Enter certification once regeneration goal is met

ACTIVITIES SUMMARY

Year	Facts Activity Code	Description
2033	4117	Clearcut harvest with reserves
2033	4493	Site preparation for natural regeneration – cut maple ash BF Spruce – Leave YB BC
2034	4341	1 st year stocking survey
2036	4341	3 rd year stocking survey
2036	4381	Certification for natural regeneration w/ SP

Prepared by: Eric Lane	Title: Silviculture Forester	Date: 2/23/2026
Reviewed by:	Title:	Date:
Reviewed by:	Title:	Date:
Approved by: Eric Lane	Title: Certified Silviculturist	Date: 2/23/2026

OTTAWA NATIONAL FOREST SILVICULTURAL PRESCRIPTION / MARKING GUIDES

NEPA DECISION DOCUMENT: Grosbeck

TIMBER SALE: Bobcat

PU: 2-7, 12-14

Ranger District	Comp-Stand	MA	LTA	ELTP	Habitat Type	Cover Type	LSC	Year of Origin	Size Density	SI	BA
02	162-18	2.1	11	423A	TMC	89	500	1930	6	46	150
02	162-24	2.1	11	421	TMC	71	840	1925	6	33	160
02	162-13	2.1	11	421	TMC	71	840	1925	6	50	140
02	162-14	2.1	11	427B	ATD-A	89	500	1935	6	47	145
02	162-16	2.1	11	427B	ATD-A	85	500	1920	6	51	110
02	178-40	2.1	11	421	TMC	89	500	-	6	39	120
02	178-04	2.1	11	427B	ATD-A	89	500	-	6	55	140
02	178-03	2.1	11	427B	ATD-A	85	500	1916	6	51	110
02	178-36	2.1	11	427C	ATD-A	89	500	-	9	48	140
02	178-01	2.1	11	427C	ATD-A	85	500	-	6	53	140
02	178-55	2.1	11	420C	ATD	89	500	1935	6	49	100
02	178-06	2.1	9/11	427C	ATD-A	89	500	-	9	54	110
02	178-09	2.1	11	427C	ATD-A	89	500	-	9	54	130
02	178-21	2.1	9	310C	ATD	89	830	-	6	41	140

STAND DESCRIPTION

These are northern hardwood stands with maple dominant throughout the overstory. Other species scattered throughout the overstory include black cherry, yellow birch, hemlock, aspen and ash. The midstory is heavily comprised of maple, but there are areas throughout where black cherry stocking is fair. Other midstory species include yellow birch, ash, and balsam fir. The understory is made up of maple, black cherry, ash, and balsam fir, with minor amounts of hemlock. Some ironwood is present within the understory as well but is limited overall. Ideally we'll look to release the healthy black cherry and yellow birch throughout the midstory. The average BA is 130 ft²/ac, with an average diameter of 10-12" DBH.

● Indicates the current average stocking for the stands listed above.

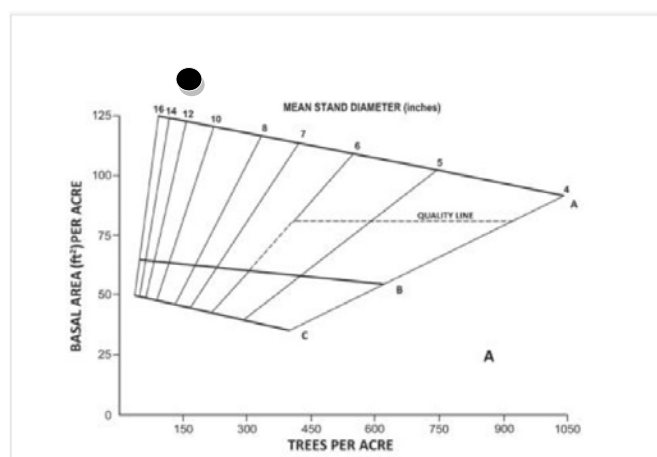


Figure 1. Northern Hardwoods Stocking Chart (Leak et al 2014)

DESIRED CONDITION

Uneven aged northern hardwood stands with the current species diversity maintained or increased. There will be minor amounts of clearcut inclusions, but selection can be applied to areas where the stocking is high and there is no need to regenerate a new age class. In areas where the objective is to regenerate aspen, maintain small, dense patches of sapling-sized balsam fir, spruce, and hemlock when practicable. Patches should not exceed 20 percent of the unit acreage.

SHORT AND LONG TERM OBJECTIVES

- Apply silvicultural treatments to regenerate and restore a healthy uneven-aged northern hardwood stand.
- Retain or increase species diversity by retaining species other than sugar maple.
- Maintain and protect ecological processes and functions in and around riparian areas where they occur within the sale area.
- Promote and maintain aspen inclusions to maintain the health and vigor of the aspen clones.
- Achieve a stocking level of 3,000 seedlings per acre of native species.

REMARKS

There may be scattered, small, poorly drained pockets, seeps, steep slopes, perched water tables, or shallow bedrock areas; do not designate any trees for removal in these areas.

100% of conifer volume should be considered salvage due to spruce decline and I&D issues within the stands. 60% of aspen volume should be considered salvage due to the aspens age class/quality. 15% of hardwood volume should be considered salvage due to overstocked stands and stressed trees. (in reference to collection rate letter dated 1/27/2025).

NEPA DECISION DOCUMENT: Grosbeck

TIMBER SALE: Bobcat

PU: 2-7, 12-14

MARKING GUIDE:

Name of Treatment - 4151 (Single Tree Selection)

Residual BA/Ac – 85 ft²/ac

Acres – See RFCA Map

MARKING GUIDE STANDARDS:

- **GENERALLY RETAIN:** hemlock, white pine, red pine, elm, paper birch, oak and cedar unless needed for logging operations.
- **GENERALLY FAVOR ALL SPECIES OTHER THAN MAPLE AND IRONWOOD.** Favor less common species but not at the expense of the best quality trees. If most conditions are relatively equal, continue to improve the relative spacing by marking ironwood, red and sugar maple to meet desired BA.
- **If advanced regeneration of yellow birch, black cherry, or red oak is present, perform a release to increase sunlight availability (this may include the removal of a large tree, or multiple smaller, poor-quality trees) This would count towards the 1 gap per 3 acres.**
- **Consider all aspen, spruce, balsam and ironwood high risk and remove all. Where groups of aspen exist, expand opening by one tree length (75') to improve stand diversity.**
- **Create medium size canopy gaps (100'x100'), measured bole to bole to encourage natural regeneration of shade intolerant/mid tolerant tree species (adjacent to healthy black cherry and yellow birch). Canopy gaps can be incorporated by the removal of large diameter and/or groups of smaller, poor-quality trees. Canopy gaps shouldn't exceed 1 per 3 acres. Work with the COR when determining location of canopy gaps.**
- **Look to perform a crown release (ideally 3-4 sided) where red oak occur**
- **Resultant stand should have similar diameter distribution to the original stand with stocking throughout all diameter classes, generally looking to reduce initial BA by 1/3.**
- **Drop zones will be necessary when removing large diameter trees.**

MARK BY ORDER OF REMOVAL

1. **HIGH RISK:** Remove trees of any size class that are diseased/structurally damaged that will die within the next 15 years that still contain merchantable products (unless needed for other resource value ie. cavity tree). Identify the best crop trees in the stand and provide a release by marking one or two main competing trees of lesser quality. If BA still higher than desired...
2. **DENSITY/SPACING:** Improve stand quality and growing space by marking fair – marginal quality trees (mostly 6-10" DBH class). Identify trees that are:
 - **Unacceptable Growing Stock:** Trees that are likely to survive for a decade but have structural/growth/disease issues, exhibit signs of marginal improvement or significant volume loss, signs of suppression and are less likely to develop sawlog potential. If BA still higher than desired...

Acceptable Growing Stock: Saw log potential trees but possess slight quality issues to form, structure, and soundness

(sweep, low branching, old branch stubs, epicormic sprouting). This also includes trees at biological maturity (black cherry > 15", sugar maple and yellow birch > 19", basswood > 21")

DESIGN CRITERIA AND MITIGATION MEASURES

Highlighted Design Criteria, see NEPA for all of the criteria

- Cull trees should be left for wildlife, do not remove trees with little or no value unless they pose a safety hazard. If cull trees need to be marked the silviculturist should be notified to look at the risk.
- If any stick nests are found the wildlife biologist should be consulted.
- Reserve snags and den trees according to Forest Plan guidelines (p. 2-32); focus on retaining trees with features beneficial to the NLEB such as shaggy bark and cavities.
- If any archaeological sites are located during layout or implementation the Archaeologist should be consulted.
- Within all harvest units except aspen clearcuts, favor hemlock, white pine, cedar, elm, and oak by retaining and crown releasing these species as directed in the stands' silviculture prescription. These species may be cut to facilitate harvest operations where necessary, or to improve growing space and vigor among these same species that may occur within inclusions. The objective for retaining these species is to improve and/or maintain structural and compositional diversity (Forest Plan, p. 2-2).

POST HARVEST TREATMENTS

FACTS Code	Name of Treatment	Prescription
4341	Stocking survey	1 st year stocking survey to ensure adequate regeneration of 3000 TPA on 70% of plots – determine tree weed/release timing
4341	Stocking survey	3 rd year stocking survey to ensure adequate regeneration of 3000 TPA on 70% of plots – determine tree weed/release timing
4382	Certification of natural regeneration	Enter certification once regeneration goal is met

ACTIVITIES SUMMARY

Year	Facts Activity Code	Description
2033	4151	Single tree selection harvest
2034	4341	1 st year stocking survey
2036	4341	3 rd year stocking survey
2036	4382	Certification for natural regeneration

Prepared by: Eric Lane	Title: Silviculture Forester	Date: 2/23/2026
Reviewed by:	Title:	Date:
Reviewed by:	Title:	Date:
Approved by: Eric Lane	Title: Certified Silviculturist	Date: 2/23/2026

OTTAWA NATIONAL FOREST SILVICULTURAL PRESCRIPTION / MARKING GUIDES

NEPA DECISION DOCUMENT: Grosbeck	TIMBER SALE: Bobcat	PU: 10
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Ranger District	Comp-Stand	MA	LTA	ELTP	Habitat Type	Cover Type	LSC	Year of Origin	Size Density	SI	BA
02	178-14	2.1	9	430D	ATD	2	500	1972	6	69	180

STAND DESCRIPTION

This is a first entry red pine plantation that was established in the early 1970's. The average BA is 170 ft²/ac and red pine diameters will vary from 6-18", but generally average 10-12". Other species are present including maple, black cherry, balsam fir, aspen and spruce but in limited capacity. The understory consists of maple, balsam fir and spruce.

DESIRED CONDITION

The desired future condition is to promote healthy, vigorous, and resilient red pine that are fully utilizing the site and putting growth on the best quality stems while supporting small inclusions of aspen and the diversity of other species. Eventually, the expectation is that the plantations would develop big trees faster, over time, and have more of a heterogeneous structure and composition.

SHORT AND LONG TERM OBJECTIVES

- Retain healthy white pine, hemlock, cedar, oak, and elm
- Promote and maintain aspen inclusions to maintain the health and vigor of the aspen clones while increasing species diversity within the pine plantation
- Maintain and protect ecological processes and functions in and around riparian areas where they occur within the sale
- Promote and maintain red pine to maintain the health and vigor of the plantation

REMARKS

There are scattered, small, poorly drained pockets, seeps, steep slopes, perched water tables, or shallow bedrock areas; do not designate any trees for removal in these areas.

NEPA DECISION DOCUMENT: Grosbeck

TIMBER SALE: Bobcat

PU: 10

MARKING GUIDE:**Name of Treatment - 4220 (Commercial Thinning)****Residual BA/Ac – see below****Acres – See RFCA Map**

- **GENERALLY** Retain all white pine, oak, cedar, elm and hemlock unless needed for logging operations
- Consider all aspen, spruce and balsam fir high risk and remove all. Where groups of aspen exist expand on the group by one tree length (75') to improve within stand diversity and promote aspen regeneration
- Establish skid trails, generally every 50 feet and 12 feet wide prior to thinning the stand. Work with the COR when establishing skid trails
- Reduce stocking between skid trails by 30% but do not mark below 120 ft²/ac in any one area (except where regenerating aspen)

Order of Removal:

1. Retain most non-red pine species in areas where densities are high, accept some poor quality; this will contribute to structural/habitat diversity objectives for the stand
2. Remove all jack pine, spruce, balsam fir and aspen
3. Mark all high-risk trees and poor vigor; consider marking most red pine with crown decline as low vigor
4. Think from below; work towards the development of co-dominant and dominant trees by removing the competing smaller diameter and suppressed trees
5. If density still above desired then mark stems within the small and larger sawtimber category that exhibit sweep, crook, and forks within the merchantable bole
6. If density still above desired, then mark trees to improve the relative spacing; reference table below for general guidelines

Spacing Guideline	
AVE DBH OBSERVED	SPACING (feet)
12"	10
14"	12
16"	14
18"	16

Crop Tree Characteristics:

1. Live Crown Ratio >30%
2. Dominant or co-dominant trees with good crown vigor and stem quality

Low risk of mortality or failure

DESIGN CRITERIA AND MITIGATION MEASURES

Highlighted Design Criteria, see NEPA for all of the criteria

- Cull trees should be left for wildlife, do not remove trees with little or no value unless they pose a safety hazard (A1). If cull trees need to be marked the silviculturist should be notified to look at the risk.
- If any stick nests are found (A1) the wildlife biologist should be consulted.
- If any archaeological sites are located during layout or implementation the Archaeologist should be consulted.
- Within red pine and spruce plantation cutting units only, the following operating requirements should be put into the timber sale contract: Within the sale area, all decked pine and spruce wood products cut during the period of May 1st through September 30th (spring and early summer thinning operations), shall be removed from the sale area within 30 days of cutting. Winter harvested pine and spruce wood products shall be removed by May 30, unless seasonal road limits prohibit hauling operations. The purpose of this requirement is to minimize the potential breeding sites for bark beetles (Gilmore and Palik, 2006, pp. 34-36).
- Designate skid trails to direct activities outside of riparian corridors as quickly as possible, minimize the number of skid trails within riparian corridors, and to avoid steep slopes (18% and greater) within the riparian corridors to avoid sedimentation and impacts on riparian function.

POST HARVEST TREATMENTS		
FACTS Code	Name of Treatment	Prescription

ACTIVITIES SUMMARY		
Year	Facts Activity Code	Description
2033	4220	Commercial Thinning

Prepared by: Eric Lane	Title: Silviculture Forester	Date: 2/23/2026
Reviewed by:	Title:	Date:
Reviewed by:	Title:	Date:
Approved by: Eric Lane	Title: Certified Silviculturist	Date: 2/23/2026

Bobcat #21034

Payment Unit & Vicinity Map - Estimated Acres



Estimated Acres

PU - ACRES

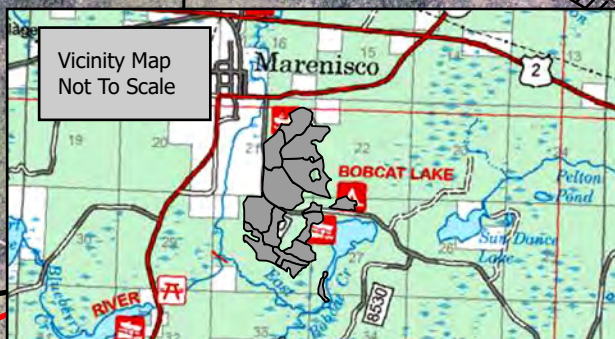
- 01 - 42 (C.C)
- 02 - 42 (CTM)
- 03 - 67 (CTM)
- 04 - 77 (CTM)
- 05 - 84 (CTM)
- 06 - 57 (CTM)
- 07 - 32 (CTM)
- 08 - 39 (C.C)
- 09 - 14 (C.C)
- 10 - 18 (THIN)
- 11 - 27 (C.C)
- 12 - 31 (CTM)
- 13 - 16 (CTM)
- 14 - 08 (CTM)
- 15 - 01 (R.O.W./USFS)

SALE ACRES

(01-15) = 555 ac

CONTRACT ACRES

(01-14) = 554 ac



- ◆ Monumented Corner
- S_USA.Section
- Bobcat Estimated Acres
- ▨ NON-FS
- USDA FOREST SERVICE
- New Construction
- - - Decommission
- Reconstruction
- Regular Maintenance
- <all other values>

Scale 1:27,000

T46N R43N

0 0.25 0.5 1 Miles

Hayley Jardeen
02/18/2026

SECTION C – DESCRIPTION/SPECIFICATION/WORK STATEMENT

Scope of Contract

This is an updated Section C document for the following timber sale:

- **Bobcat Stewardship T.S. (*Estimated Acres*)** – Payment Units 01-14; 554 acres 1166296

This timber sale marking project involves timber marking and volume estimation of approximately 554 acres in Northern Hardwoods, Aspen, and Pine forest types, broken down by the following descriptions:

(1) HARDWOOD SINGLE-TREE SELECTION (uneven-age) (Marking & Cruising)

Payment Units 02-07, 12-14; approximately 414 acres

Uneven aged stands or even-aged stands with uneven-aged or even-aged objectives consisting of a mixture of Northern Hardwood types of various size classes. These stands contain both pulpwood and sawtimber Species/Product/Unit mixes. Marking objectives are to remove trees considered high risk, defective, poor form, or mature and to maintain or develop size class structure with optimum growing stock, per the specific marking instructions.

(2) THINNING SINGLE-TREE SELECTION (Commercial Thinning) (Marking & Cruising)

Payment Units 10; approximately 18 acres

Commercial thinning of pine. These stands contain both pulpwood and sawtimber Species/Product/Unit mixes. Marking objectives are to remove trees considered high risk, defective, poor form, or mature and to maintain or develop size class structure with optimum growing stock, per the specific marking instructions.

(3) CLEARCUT/REMOVAL CUT (Marking & Cruising - where all trees are counted)

Payment Units 01,08-09, & 11; approximately 122 acres

Generally, in a clearcut or removal cut, where all LIVE and/or DEAD trees that meet minimum specifications for size or species are designated for removal EXCEPT for trees marked as RESERVE TREES, LEAVE TREES, or trees within PROTECTED AREAS.

In Payment Units where designated Species are too variable for Area Estimate Cruising methods, trees designated for removal will be marked with an intentional and discernable paint spot at eye level no smaller than 1 square inch to verify the tree was counted. Minimize over spray on non-designated species to avoid confusion. A stump mark is not generally required. Paint spots will face in generally the same direction. If any designated leave species (per marking instructions) are marked with a CTM designation, contractor will indicate this on tally card.

(4) SAMPLE TREE CRUISING METHOD

Applies to ALL Payment Units within the Bobcat Stewardship T.S.

The Sample Tree cruising method (STR) involves measuring a specified proportion (Sample Interval) of trees in the defined sub-population. The remaining trees included for removal are tallied as count trees. With this cruising method, every tree included for removal must be visited and marked.

NOTE: USFS *has not* marked the Road R.O.W. units for this sale yet. This will be done by USFS at a later date. For units that have a road running through them, contractor should still mark/cruise trees up to the edge of the existing road clearing.

NOTE: Government furnished tree marking paint (TMP) will be issued, or returned, by appointment only at the WATERSMEET RANGER DISTRICT OFFICE. The primary point of contact for all TMP transactions will be the paint custodian. This person will be identified at the pre-work meeting. BLUE paint has been designated for this sale.

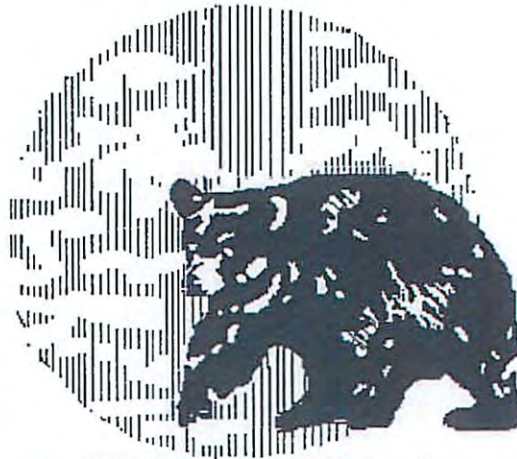
NOTE: USFS will mark any and all Leave Trees.

NOTE: **Contractor will supply all gap locations on a map and coordinate this with the Contracting Officer Representative. **

This sale can be accessed from the following directions:

From Watersmeet, Travel west on US-2 for 25.6 miles. Turn south onto Hwy 64 south and travel 0.3 miles. You will have reached the center of the sale with the sale being on the north and south side of Hwy 64 south.

**USDA FOREST SERVICE
LAW ENFORCEMENT & INVESTIGATIONS
EASTERN REGION**



**O·T·T·A·W·A
NATIONAL FOREST**

**TIMBER THEFT PREVENTION PLAN
OTTAWA NATIONAL FOREST**

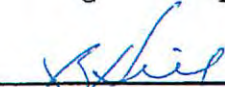
Approved by:

Ottawa National Forest


JAMIE L. DAVIDSON
Acting Forest Supervisor

3/20/19
Date:

**R9 Law Enforcement &
Investigations**


BRANDY HILL
Patrol Captain

3/18/19
Date:

TIMBER THEFT PREVENTION PLAN OTTAWA NATIONAL FOREST

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TIMBER THEFT PREVENTION PLAN OTTAWA NATIONAL FOREST

INTRODUCTION

The intent of the Ottawa National Forest (ONF) Timber Theft Prevention Plan (TTPP) is to improve and standardize theft prevention and detection measures by gaining consistency at the Forest level. All employees of the Forest Service share in the responsibility for the prevention, detection, reporting, and investigation of timber theft.

This plan is intended to promote effective coordination and communication with Timber Management (TM), Law Enforcement & Investigations (LEI) and other staff groups when addressing violations of laws and regulations, noncompliance with timber sale contract provisions resulting in resource degradation, special forest products program administration, and unlawful cutting or removal of timber on adjacent public and private lands within National Forest boundaries.

The TTPP will also address the prompt detection, apprehension and prosecution of individuals entering the National Forest for the purpose of stealing timber or other forest products. Timber theft prevention on the ONF is a joint effort between TM and LEI. Involvement of State and Local law enforcement agencies and the public is welcomed to assist in observation and reporting of all unlawful activity affecting the National Forest System.

All direction in the R9 TTPP is incorporated by reference and shall be adhered to on the ONF. The ONF TTPP will be reviewed annually and amended as needed to comply with any new or revised regulations or agency policies, including the R9 TTPP.

OBJECTIVES

This plan was developed to deter or prevent timber theft and improve our ability to detect, apprehend, and prosecute violators when theft does occur. The objectives of this plan are to:

- Provide the skills and coordination necessary to prevent timber theft and prosecute timber theft when it does occur.
- Promote and develop positive employee perceptions and attitudes regarding law enforcement and regulatory responsibilities in order to enhance and maintain timber and forest products accountability.
- Develop and use processes and procedures that will reduce vulnerability and increase our ability to identify and detect product loss and theft.
- Strengthen coordination between timber management and law enforcement so legal action can be aggressively and effectively pursued when theft does occur.
- Promote and encourage coordination between National Forests for the prevention and detection of collusive bidding and market manipulation.

TIMBER THEFT PREVENTION PLAN
OTTAWA NATIONAL FOREST

OPERATING PROCEDURES & ACTIONS

1. Organization and Staffing

As Forest Service budgets continue to be influenced by other national priorities; it is critical that the agency continue to explore ways to be more efficient in both TM and LEI program areas. Every opportunity to develop and maintain efficiencies and will be explored. Timber sale operations cannot be managed using shortcuts or deviations from existing policies or prescribed processes, nor can we accomplish desired objectives with untrained or understaffed organizations. It is recognized that we cannot sacrifice standards of professionalism or accountability to achieve the desired efficiency.

The Forest Supervisor and Patrol Captain will take the necessary steps to ensure qualified personnel are in place to effectively accomplish timber management and regulatory compliance program objectives. Training and certification standards for all TM and LEI personnel will meet the intent of Forest Service Manual and Forest Service Handbook directives. The Forest Supervisor and Patrol Captain will also insure that Forest Protection Officers (FPO) are trained and available for compliance and accountability work with Special Forest Product permits at appropriate times of the year.

The Forest will be committed to providing ground floor training and other opportunities that will provide a replacement workforce as key personnel leave the timber management program. When an individual has been selected for a future position as a timber sale administration team member, completion of the formal training required will be scheduled and completed within two years. Experience plus training will lead to certification within four years.

A timber sale administration team consisting of the following positions will be established for each timber sale:

- Contracting Officer
- Forest Service Representative
- Sale Administrator
- Harvest Inspector (as needed)
- Engineering Representative
- Construction Inspector (as needed)
- Contracting Officer's Representative or Service Work Inspector (Stewardship Contracts)

In addition to the timber sale administration team, the Law Enforcement Officer (LEO) assigned to that Ranger District or other administrative unit will serve as an ad hoc team member and will receive timely notification of sale activity and pre-work meeting dates. It is recommended that the district TM financial assistant provide the LEO with a copy of the timber sale map and prospectus upon each contract award. The LEO and Sale Administrator will serve as primary liaison between TM and LEI.

The Forest Contracting Officer will maintain training and certification records for all members of the timber sale administration team. The Forest Check Cruiser will maintain training and certification records for all certified timber cruisers and scalers. The Patrol Captain will maintain all training and certification records for LEI personnel including all LEO's and FPO's. The Forest Engineer will maintain all training and certification records for civil engineering personnel. Training records will include all refresher and recertification requirements and satisfactory accomplishment.

TIMBER THEFT PREVENTION PLAN OTTAWA NATIONAL FOREST

2. Cross-Training and Coordination

Law Enforcement will be represented on all formal ONF timber sale reviews/audits. They will focus on all aspects of timber theft prevention, report findings and recommend actions.

Both LEI and TM personnel shall receive ongoing cross-training and updates to familiarize each with timber sale and forest products administration and regulatory compliance and law enforcement. This is intended to provide a basis of understanding for each to assist the other in a successful resolution of timber and forest products violations.

TM—LEI cross-training and coordination meetings will be held a minimum of every two years. These meetings will require at least four hours of timber theft prevention training as well as an evaluation of the integration between TM and LEI personnel. All LEI personnel and timber sale administration team members assigned to the ONF will be required to attend. Affected Line Officers and other TM personnel are encouraged to attend. LE&I personnel shall attend at least one quarterly Ottawa Timber Sale Administration Team meeting per year.

It is strongly recommended that Timber Sale Administrators and Harvest Inspectors be trained and certified as Forest Protection Officers.

3. Timber Sale Preparation

Standards of timber sale preparation shall be consistent with all regulations, Forest Service Manual and Forest Service Handbook policy directives. All training and certification standards for timber measurement and timber measurement personnel will be met without exception.

Supplemental timber sale preparation standards for the ONF are as follows:

Timber Cruising

- All contract markers will be certified by a Forest Check Cruiser before they are allowed to cruise National Forest timber. They will meet the same standards and frequency of certification as Forest Service personnel.
- Only tracer paint with a tracer element registered to the USDA shall be used for timber sale cruising applications.
- When conducting a sample tree cruise in units where trees are to be harvested by designation; all designated trees will have a spot of paint put on them to insure accurate tree counts between sample trees (no stump marks).

TIMBER THEFT PREVENTION PLAN OTTAWA NATIONAL FOREST

Paint Application

- The ONF will follow the National paint color scheme for tree marking paint as found in WO FSH 2409.12, 71.21 – Exhibit 1. Any deviation shall be coordinated with LEI and documented in the sale folder. Only tracer paint with a tracer element registered to the USDA shall be used for timber sale marking applications.
- Boundaries Trees shall be marked at eye level or higher with orange paint. Mark trees that are expected to last for the duration of the timber sale along payment unit and protected area boundaries. Payment units and protected areas will be completely encircled by painted boundary trees. Boundary trees will be inter-visible during the leaf-on period. The only exception permitted would be where the payment unit is intended to follow a dominant feature on the land and will be shown on the sale area map; such as a system road or powerline.
 - Exterior boundaries - Trees shall be marked at eye level or higher with three slash lines facing into the respective payment unit and a stump mark. Respective payment unit number shall be painted on a portion of the boundary trees. 1/
 - Interior (common) boundaries - Trees shall be marked at eye level or higher with two slash lines facing into the respective payment units and a stump mark. Respective payment unit numbers shall be painted on a portion of the boundary trees. 1/
 - Protected areas - Trees shall be marked at eye level or higher with three slash lines and “PA” facing away from the protected area and a stump mark. 1/
 - No equipment zone boundaries-Trees shall be marked at eye level or higher with one slash line facing away from the zone into the payment unit.
- Unless there are overriding circumstances Cut Tree Marked (CTM) units and DxSPP units with additional trees to be cut shall be marked with blue or green paint. Road units shall be CTM with yellow paint.
 - Sawtimber - Trees shall be marked with a single two inch wide reasonably horizontal stripe of paint on opposite sides of the tree at eye level or higher along with two stump marks. Eye level marks shall cover the entire face of the bole and in all circumstances be visible from all sides of the tree. On sloped ground, eye level marks shall be on the uphill and downhill side of the tree. 1/
 - Pulpwood - Trees shall be marked with a single two inch wide reasonably horizontal stripe of paint on opposite sides of the tree at eye level or higher along with one stump mark. Eye level marks shall cover the entire face of the bole and in all circumstances be visible from all sides of the tree. On sloped ground, eye level marks shall be on the uphill and downhill side of the tree. 1/

TIMBER THEFT PREVENTION PLAN OTTAWA NATIONAL FOREST

- Leave Tree Marked (LTM) units & leave trees within DxSPP units shall be marked with a single two inch wide reasonably horizontal stripe of orange paint on opposite sides of the tree at eye level or higher along with a stump mark. Eye level marks shall cover the entire face of the bole and in all circumstances be visible from all sides of the tree. On sloped ground trees shall be marked on the uphill and downhill side of the tree. 1/
- Reserve Trees - Trees shall be marked with a single two inch wide band of orange paint encircling the tree and “RT” at eye level or higher along with two stump marks. If there is more than one type of reserve tree on a sale; the banding needs to be different in order to differentiate in the contract. 1/
- When de-marking of painted trees is necessary prior to sale advertisement; black paint shall be used to completely cover the eye level and stump marks. This also applies to boundary trees. Any demarking of painted trees shall be documented in the sale file.

1/ Stump marks - All stump marks shall be made so a portion of the mark is touching the ground, and will remain once the tree has been cut to contract specifications. Stump marks shall be a minimum of 12 square inches (i.e. four inch diameter spot). Mark should be concentrated in a crevice of the tree relatively free of moss or lichens. On sloped ground, the stump mark shall be placed on the downhill side of the tree. A long tail will be incorporated on boundary trees, reserve trees, and cut trees (CTM/DxSPP) to help verify presence of the mark during deep snow/winter logging operations.

Scaled Sales

- In Region 9, the Regional Forester must approve the use of scaled sales. Review “Scaled Sales” section on page 4 of the 05/2018 R9 TTPP for circumstances that may warrant consideration for scaling.

Bid Opening

- The Line Officer will designate a Bid Custodian and Sale Officer in writing. The designations will be to a named individual and not to a position or job title. The Bid Custodian is responsible for receipt and custody of sealed bids and posting of bids; the Sale Officer is responsible for the opening and review of sealed bids.
- There will be a Collection Officer present at the bid opening to account for cash receipts.
- There will be a Contracting Officer readily available during all bid openings to address any bidding irregularities.

4. Timber Sale Administration

Forest Service Representatives, Timber Sale Administrators and Harvest Inspectors are the primary on-the-ground personnel responsible for ensuring consistency in the interpretation, administration, and compliance of the terms and conditions of a timber sale contract. Contract requirements must be administered with firmness, fairness and consistency. Only qualified personnel may administer timber

TIMBER THEFT PREVENTION PLAN OTTAWA NATIONAL FOREST

sale contracts. Certification requirements for sale administration team members are found at FSH 2409.15 Chapter 10 and FSM 2452.4.

Supplemental timber sale administration standards for the ONF are as follows, with special emphasis on the accountability of additional timber:

- All Contracting Officers will be delegated their authority to sell and dispose of National Forest timber by the Regional Forester. The Contracting Officer for each timber sale will designate in the award letter the other members of the timber sale administration team by name. All award letters will have the appropriate Exhibit 1 of Supplement R9 R0 FSM 2450.46 as an attachment to show the contract responsibilities for each timber sale administration team member.
- Prior to commencement of timber sale operations; a pre-work meeting with the Purchaser and/or Purchaser's Representative is encouraged. This meeting will be documented in writing and included in the sale folder. The Forest Service Representative and/or Timber Sale Administrator will generally conduct the pre-work meeting. Engineering personnel will be present if there is any specified road work. The LEO assigned to the sale will receive a documented written request (generally an e-mail message) to attend. When feasible, the written request will be at least five work days before the meeting. The LEO will make every effort to attend unless not available because of other work deemed more critical. In the absence of LEI attendance, the person conducting the pre-work meeting will discuss the role of LEI in timber accountability and theft prevention.
- Additional Timber - Only tracer paint with a tracer element registered to the USDA shall be used for designating additional volume. Additional timber will be designated in a color and/or manner different from the original color/manner used to mark the payment unit. Unless there are overriding circumstances it will be the policy of the ONF that additional timber shall be marked with yellow paint at eye level or higher and at the stump.
 - Sale administration team members marking and cruising additional volume must be Certified Cruisers.
 - "Additional timber" is identified by mutual agreement. Sale administration personnel will ensure that the timber sale inspection report clearly states the reason for the additional timber, applicable contract provision(s) and is signed by both the Purchaser's Representative or Field Representative and the Forest Service Representative or Contracting Officer.
 - No additional timber will be cut without prior designation, measurement and payment. Merchantable trees run over, pushed over or otherwise damaged by timber harvesting equipment in order to circumvent adherence to additional timber policy will be reviewed by LEI and TM for criminal violation or contractual noncompliance.
 - If significant amounts of additional timber are necessary, consultation with a certified silviculturist and other appropriate resource specialists will occur to assure the best marking prescription.
 - For amounts of additional timber exceeding 40ccf (50 cords) per incident, cruise shall be completed by a certified cruiser(s) not part of the sale administration team; or an independent

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check cruise will be performed by a certified cruiser other than the sale administration team member who marked the volume.

- Additional and delete timber cruise data will be recorded on a separate tally cards. The batch number/color of paint will be recorded, the payment unit and IR date of additional timber will be documented and the person marking and cruising will date and sign the card. Attach the cruise card and cruise results showing the additional volume to form FS-2400-66. The FS-2400-66 will be signed by the Forest Service Representative/Timber Sale Administrator and the Timber Financial Assistant. Make sure that all additional timber is accounted for in timber sale accounting in the month it was marked and that it is applied to the payment unit from which it came.
- Although discouraged; if a boundary tree is marked as additional timber, the yellow paint shall be placed adjacent to the boundary paint (not over) in order to document that the tree was designated prior to removal.
- Any boundary tree damaged through the Purchaser's operations shall not be designated as additional timber. Any damaged boundary tree shall remain on site to ensure the integrity of the boundary.
- When de-marking of painted trees is necessary after sale advertisement; black paint shall be used to partially cover the eye level and stump marks. A portion of the original paint must remain visible to document that the tree was originally painted. This also applies to boundary trees.
- When re-marking of painted trees is required; the original paint marks shall remain to document that the tree was originally marked. Boundary trees shall be "freshened" with orange paint.
- Purchaser's use of paint on the sale area must be approved in advance and documented by written agreement between the Forest Service Representative and the Purchaser's Representative. No timber shall be marked with a similar color paint or manner as used by the Forest Service. Red is not an acceptable color.
 - Purchaser's use of paint on cut trees at the landing does not require approval but shall be a different color than what was used on the sale by the Forest Service.
- Timber Sale Inspection Report (form R9-2400-74 or FS-2400-0081) shall be utilized to document all sale inspections. Completion of the report will be thorough and accurate. This includes the payment unit status area, all applicable work progress items and detailed comments on observations of Purchaser's operations. The comments section will reference the appropriate contract provisions. All cutting of undesignated timber, excessive damage to timber, other resource damage, personnel accompanying the Sale Administrator, and who's on site will be documented. Any mutual agreements to correct contract non-compliance, approval of actions taken or acceptance of work will require the inspection report to be signed by the Purchaser or their designated Purchaser's or Field Representative. Subsequent inspection reports will document whether non-compliance items were corrected. All timber sale inspection reports will be reviewed and signed off on by the Forest Service Representative for the sale. The District Line Officer should do monthly spot reviews of inspection reports and sign/date those reviewed.

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- The minimum inspection frequency of active timber sales will be at a level to assure Purchaser's operations are in compliance with the terms and conditions of the contract. Active sales with highly mechanized crews and high production rates will be inspected at least once per week. Inactive sales will be checked occasionally to make sure they are inactive; these visits will also be documented.
- Tracer paint checks will be made by sale administration personnel at least once per month on each active payment unit. Documentation will be made on the inspection report. As paint becomes older and less prominent on trees, the tracer paint check may not always be conclusive. In these cases, record on the inspection report ONLY that a tracer paint check was made on the payment unit. On a separate inspection report, describe the tracer paint deficiency(s) and write on it: "This inspection report is NOT to be sent to the Purchaser". Consult with the Contracting Officer and LEI on steps to take next.
- LE&I personnel should participate on one active timber sale inspection with a Forest Service Representative, Sale Administrator or Harvest Inspector monthly. A quarterly joint inspection will be required and documented on the sale inspection report and an LEO Sale Inspection Report.
- Prior to recommending final acceptance of any payment unit, the Forest Service Representative or Timber Sale Administrator will document on the IR that all wood has been cut and removed, that all other obligations such as slash disposal, erosion control work, etc. have been completed and that there has been no unauthorized changes to or cutting outside the payment unit boundary. It is strongly recommended to do a final payment unit boundary check.
- Disputes relating to the timber sale contract will be settled by the Contracting Officer. Prior to a final dispute resolution by the Contracting Officer, they will consult with the appropriate next higher level Contracting Officer.
- Scaled Sales – In Region 9, the Regional Forester must approve the use of scaled sales. Review "Additional requirements for weight scaled sales" on page 6 and 7 of the R9 TTPP and "Additional requirements for deck scaled sales" on page 7 of the R9 TTPP for sale administration requirements. The Scaled Timber Sale Guidelines for the Eastern Region shall be adhered to.

5. Regulatory Inspections

Regulatory Inspections are those field inspections conducted by Law Enforcement Officers and Forest Protection Officers who are not ordinarily members of the timber sale contract administration team. The goal of these inspections is to enhance timber and forest products accountability and to prevent and/or detect crimes and regulatory violations associated with timber and forest products operations. The frequency of regulatory inspections is determined by availability of LEI resources in coordination with local line officer priorities.

Law Enforcement Officers shall make every effort to attend at least one pre-work meeting per calendar quarter in their area of responsibility. It is the responsibility of TM to provide LE&I with, as much as feasible, at least five work days advance notice of when a pre-work meeting is planned.

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Law Enforcement Officers shall conduct random, independent timber sale inspections and patrols to maintain a highly visible law enforcement presence at least once a month unless they are needed for higher priority work. Attention will be paid to public safety and protection of private property, as well as observations that would indicate theft of National Forest timber. Tracer paint tests will be performed during these inspections. Written documentation of these inspections/patrols shall be forwarded to the Sale Administrator for inclusion in the sale folder. It is LEI's responsibility to contact the sale administrator for a listing of active timber sales. This will allow LEI to adequately patrol and monitor commercial timber sales, and identify activities of concern.

LE&I personnel should participate on one active timber sale inspection with a Forest Service Representative, Sale Administrator or Harvest Inspector monthly. A quarterly joint inspection will be required and documented on the sale inspection report and an LEO Sale Inspection Report.

Law Enforcement Officers will assist timber sale administration team members with inspecting payment unit boundaries when there is concern the boundary may have been altered. Other general boundary inspections are encouraged.

The administration of special forest products permits is the shared responsibility of TM, LE&I and the respective District Rangers. Law Enforcement Officers will coordinate with TM and District Rangers during periods of peak forest products activity to ensure that adequate Forest Protection Officer staffing is provided for the administration of special forest products permits. District Rangers and TM will involve LEI personnel in matters of special forest products policy formulation and program implementation.

With assistance from district Forest Protection Officers, Law Enforcement Officers are responsible for special forest products load accountability checks.

6. Documentation

Documentation of timber sale activity is critical to both contract administration and prosecution of criminal conduct.

While not required, it is strongly recommended that a pre-work meeting be conducted and documented. A well-documented pre-work meeting sets the stage for the theft prevention message. During this initial meeting with the purchaser, both TM and LEI concerns regarding timber theft, additional timber, tracer paint and other emphasis items should be documented in detail and signed by both parties. Timber Sale Administrators and Harvest Inspectors are required to use the Timber Sale Inspection Report (form R9-2400-74 or FS-2400-0081) to document all sale inspections.

The use of the Timber Sale Inspection Report was described under the Timber Sale Administration section. It is a critical report because subsequent contract compliance and/or law enforcement actions are extremely dependant on the thoroughness and accuracy of the information it contains

All LEI visits to timber sale areas, including load accountability checks conducted in association with active timber sales or permits, will be documented on form FS 5300-1, Incident Report or LEO Sale Inspection Report. When no violations of contract, law or regulation are detected, the Incident Report will be recorded as non-criminal, administrative, with an offense code of FSM 2400. A copy of each

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FS 5300-1/LEO Sale Inspection Report will be provided to the Sale Administrator responsible for that timber sale. All such LEI records will be entered into LEIMARS for later query and data retrieval. The Patrol Captain or LEI Zone Administrative Assistant will ensure a copy of the FS 5300-1 is sent to the SO for the Official Contract folder. All LEI Forest Products permit compliance checks will be documented in the same manner.

All items and issues requiring Purchaser's contractual corrective action will be documented when the requirements have been satisfied/completed. The intent of this policy is to properly identify issues and document closure of them. All regulatory violations will be documented on form 5300-1, Incident Report.

7. TM-LE&I Timber Theft Protocol

See Timber Trespass Guidelines & Procedures for the ONF, Appendices A and B.
See also R9 TTPP, 05/2018, pages 16-19.

LAW ENFORCEMENT ACTIONS

1. General

There are two objectives for coordination between TM staff and LEI personnel. First, to ensure cooperation before and during investigations of unauthorized cutting and excessive damage; and second, to ensure appropriate actions are taken regarding contractual obligations, while preserving options for criminal and civil remedies where appropriate. All incidents involving the cutting of trees or timber outside the scope of the provisions of the appropriate contract or permit will be dealt with using the standard of strict liability; appropriate law enforcement action will be taken in every case, even when contractual remedies are in place.

All Forest Service employees have the responsibility for and are required to notify LEI when undesignated timber is cut or damaged, or resource damage has occurred. This notification to LEI must be within 48 hours of discovery. If willful theft or damages are suspected, notification will be within 24 hours. ALL CUTTING OF UNDESIGNATED TIMBER WILL BE REPORTED.

The decision to take a law enforcement action will be made by LEI personnel in consultation with the U.S. Attorney. Law enforcement action may occur in concert with contractual actions.

A thorough investigation requires detailed information from timber staff and other resource disciplines. Qualified timber management personnel will determine the total number of tree(s), volume and value of tree(s) and number of acres. This information will be provided to LEI as well as being documented on inspection report(s).

After the investigation is completed, LEI will relate the findings to the appropriate Line Officer. All contractual remedies will be the decision of the Timber Sale Contracting Officer.

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2. Crime Scene Protection and Evidence Preservation

Crime scene protection and protection of physical evidence is fundamental to all criminal investigations. It is the responsibility of all Forest Officers and of LEI personnel in particular. LEI personnel have primary responsibility for and absolute discretion in securing the crime scene, and securing, seizing, protecting, and analyzing evidence of criminal conduct. TM personnel will assist to the degree their professional expertise is required and requested by LEI personnel. When crimes occur within the geographic boundaries of a timber sale area or timber sale payment unit, it may be necessary for LEI personnel to secure areas and equipment in furtherance of the criminal investigation. While it is recognized that LEI personnel have no contractual authority to affect a formal suspension of operations, they do have criminal justice authority to secure and collect evidence. If it becomes necessary for LEI personnel to curtail operations on a timber sale in any way, the sale administration team and Forest Supervisor will be immediately notified.

3. Issuance of Violation Notices

The issuance of a violation notice for the cutting and/or removal of undesignated timber may be initiated by any LEI personnel or the Timber Sale Administrator involved in the detection and documentation of the violation(s) if that Timber Sale Administrator is also currently certified as a Forest Protection Officer. It is strongly recommended however that members of the sale administration team do not issue violation notices/warnings. Violation Notice(s) will be issued to the party or parties responsible whenever circumstances indicate negligence. Whenever willful criminal conduct is indicated or the value of timber unlawfully cut exceeds \$5,000, a violation notice will not be issued, except after referral through the LEI chain-of-command for possible felony prosecution.

LEI personnel and Forest Protection Officers may exercise the discretion to require a defendant's mandatory appearance before the presiding United States Magistrate Judge when, in that officer's judgment, the offense is of an aggravated nature. Recidivism (repeat offenders), failure to comply upon notice, and serious public safety offenses may be considered by the citing officer. Additionally, when restitution to the United States, the National Forest, or any other victim exceeds the value of fines and restitution pursuant to the collateral forfeiture schedule, mandatory appearance should be considered. If recovery of damages can be made through operation of the timber sale contract (liquidated damages), victim restitution should not be a factor in requiring the defendant's mandatory appearance. Nothing herein shall prohibit the law enforcement officer from arresting a person for the commission of any offense against the United States, including those for which collateral may be posted in lieu of appearance.

Restitution values for trees or timber unlawfully removed will always be at fair market value or "mill-delivered" rates for the highest value of the product removed, unless contractual remedies for collection of "liquidated damages" are determined to be used. The Natural Resource Valuation Table found in the Collateral Forfeiture Schedule for the Western District of Michigan may be used for incidental amounts of timber or forest products restitution.

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SUSPENSION AND DEBARMENT

1. Mandatory Referral Policy

Policy: Referral for Suspension and/or Debarment is mandatory for the following causes. There is no discretion about whether to refer a case for these causes. (FSM 2433.12)

Debarment may be imposed for causes that include (see 2 CFR 180.800 for more detail):

- Commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a public or private agreement or transaction.
- Violation of Federal or State antitrust statutes, including those prescribing price fixing between competitors, allocation of customers between competitors, and bid rigging.
- Commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, receiving stolen property, making false claims, or obstruction of justice.
- Commission of any other offense indicating a lack of business integrity or business honesty that seriously and directly affects the present responsibility of a person.
- Violation of the terms of a public agreement or transaction so serious as to affect the integrity of an agency program.

Causes for Suspension (FSM 2433.12)

- Suspension may be imposed when there is adequate evidence of the commission of possible cause(s) for debarment as set out in paragraphs 1 and 2 of FSM 2433.11.
- Indictment is adequate evidence for a suspension action. Referral for suspension is mandatory for actions including, but not limited to, Forest Service law enforcement investigations and/or indictments for causes listed in FSM 2433.11.

2. Exceptions to Mandatory Referral for Debarment and/or Suspension

Causes for debarment must be established by a preponderance of the evidence; that is, it is more likely than not that the alleged act or violation occurred. A cause for debarment does not require a referral if the person is not a participant in covered transactions.

- A conviction or civil judgment for any of the causes for debarment meets this standard of evidence for initiating a debarment action. Where a cause for debarment is not based upon a conviction or civil judgment, ensure the referral to the debarring official is comprehensive and complete, and provides documentation sufficient to demonstrate the cause(s) for debarment by a preponderance of the evidence.
- Violation notices (VN) that result in a court conviction of a participant in a covered transaction (timber sale contract) for causes listed in this section constitute cause for debarment.
- Violation Notices (VN) that result only in forfeiture of collateral by a participant in a covered transaction are not required to be referred to the debarring official on the basis of a conviction. However, forest personnel must determine whether the facts and evidence leading to the issuance of the VN constitute the existence of a cause for debarment. If the answer is yes, the matter must be referred to the debarring official.

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3. Case Documentation and Submission

See FSM 2433.2 – Investigation and Referral Process - for complete description of the steps and responsibilities for referring a case.

PREVENTION

1. Theft Prevention Plots

Districts are encouraged to establish monitoring plots on timber sales where a high potential for timber theft exists. Consideration should be given to high value products, substantial overbids, operator history, access to sale area, etc. Forest Service Law Enforcement personnel will take the lead in the establishment of timber theft prevention plots. This includes plot development and record maintenance. Each zone will specify at least one individual that will be available for plot establishment and monitoring. No contract administration personnel (SA or FSR) shall be given any information as to the existence or non-existence of monitoring plots on specific sales. Plots should be established and monitored on a representative number of sales annually.

Policy:

- a. Theft prevention plots shall be used on an optional basis.
- b. Plots can be established prior to or after sale award.
- c. GPS and a witness are required in the establishment of plots.
- d. Plot design and sampling methods will be mutually agreed upon by LEI and TM personnel (not SA or FSR) unless plots are established by LEI personnel only.

2. Sale Area Layout

Where possible; do not build “sharp” jogs into payment unit boundaries that could intentionally or accidentally be straightened out during the course of harvest operations. Where this is unavoidable; ensure that boundaries are well designated with documentation in the sale folder. Trees inadvertently marked across the payment unit boundary shall be de-marked by a certified cruiser in a manner as specified above in “*Timber Sale Preparation-Paint Application*”

3. Tracer Paint Security (Reference R9 TTPP, 05/2018, Pages 8-9)

Only tree marking paint containing a tracer element registered to the USDA will be used in designating any National Forest tree for removal, designation of leave and reserve trees, designating payment unit and protected area boundaries and all timber cruising applications.

Forest and District staff will maintain complete inventory records for tracer paint and perform sufficient tests to confirm that paint used to mark trees contains tracer element pursuant to FSH 2409.12, Chapter 72.3. Inventory records will track tracer paint from acquisition to the disposal of empty paint cans. Designated paint custodians shall test each new batch of tracer paint prior to use and document on the inventory form. Sale Administrators will perform tests to determine the presence of tracer elements in the paint on marked trees and document the results of such tests in sale inspection

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reports. Timber and log accountability audits and timber activity reviews will include procedures which verify compliance with Washington Office standards for tracer paint accountability and testing.

SO TM staff shall maintain a Forest master list of all District Ranger designated paint custodians and paint property managers. FSH 2409.72, describes direction for accountability and security requirement for tree marking paint.

- Upon initial delivery to the paint storage facility, each batch number, color, and container size will be checked for tracer paint by placing a sample on a card stock tag or wooden paint stick. These samples will be maintained in a readily available location and will be retained for at least five years after the batch number/color has been used up.
- When paint is transported to the field by Forest Service personnel or by contract markers, it will be outside the cab and in a locked container securely attached to the vehicle. The container will have a non-forest service lock system. A combination lock is the preferred method. On a limited basis, minor amounts (usually less than 24 quarts), can be transported inside the vehicle cab as long as it is in a properly sealed container that is properly fastened down. When away from the vehicle, the storage container and vehicle will be locked.
- Contracting Officer's Representative must check and document tracer paint security by the contractor. Documentation will include the pre-work discussion about tracer paint security, security of tracer paint on the job site and any off site paint storage facilities used by the contractor. Paint must remain locked in an area designated for that purpose and be accessible only to designated personnel. Contract requirements for paint security shall include the same requirements used by Forest Service personnel. Unless otherwise agreed to in writing by the Contracting Officers Representative; contract markers will be required to check-in/reconcile paint at least once every 10 business days.
- TM personnel who use minor amounts of marking paint during a week will be required to check in/reconcile paint at least monthly. Government vehicles containing the paint used by these personnel will be in a locked garage every evening and the vehicle will also be locked. These personnel may be on a timber sale area after normal working hours and, if not a Paint Custodian or the Paint Property Manager, will not have paint room access to regularly check in/reconcile the paint.
- Marking crews that normally use larger amounts of paint will be required to check in/reconcile paint on a daily basis.

Tracer Paint Accountability (Reference R9 TTPP, 05/2018, Page 8-9)

- Paint Custodian(s) will issue paint and maintain the paint inventory.
- Paint inventory will be maintained on form FS 2400-65, Issue and Inventory for Tracer Tree Marking Paint. A separate form FS-2400-65 will be used for each batch number/color and container size to document paint use. All entries on FS-2400-65 will be made in ink and initialed by the Paint Custodian. Needed changes will be crossed out in ink and initialed by the Paint Property Manager or Paint Custodian. Any discrepancy found at any time with the paint inventory will be reported immediately to the District Ranger and LEI.

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- Paint Custodian will reconcile the paint inventory at least once per month. This will be documented on FS-2400-65 and signed off in ink. The original will be kept at the District since check-out and check-in entries may cover more than one month.
- The Paint Property Manager will reconcile the paint inventory every quarter. An original letter, signed by the Paint Property Manager, verifying accountability accompanied by a completed Quarterly Paint Audit Record form will be sent to the Forest Supervisor and Contracting Officer. The District will maintain copies of the quarterly audits and have them readily available.
- The Forest Contracting Officer will perform an annual paint inventory audit at each storage location and report results to the Forest Supervisor.

Missing or Unaccounted for Tracer Paint

Immediately upon determination that tracer paint is missing or unaccounted for, the Paint Custodian or other TM personnel responsible for such paint will notify the District LEI officer and the Forest CO/Timber Program Manager. As soon as practical, the district LEI officer will notify the Patrol Captain and the Forest CO/Timber Program Manager will notify the Forest Supervisor.

LEI will conduct a thorough investigation to determine the facts and circumstances relative to the missing paint and to attempt recovery if theft is suspected. Timber Management personnel will provide all necessary assistance to the LEI investigation. TM/LEI will coordinate to recover missing paint if theft is not expected.

When missing or unaccounted for tracer paint is not recovered after all logical and reasonable efforts are made to recover it, an AD-112 (Report of Unserviceable, Lost, Stolen, Damaged or Destroyed Property) will be completed and signed by the District Ranger. A letter to the file from the District Ranger, along with the AD-112, will describe the efforts made to recover the tracer paint and that it is considered not recoverable.

Tracer Paint Can Disposal

All empty containers will be stored in a secure tracer paint storage facility until they are properly disposed of.

Empty cans will be disposed of by one of the following methods:

- 1) Rinsed (this does not apply to rain resistant formulation) to remove all soluble residue with rinse water going through the sewage system.
- 2) Sanding (or comparable material) the liquid residue and store the cans until the residue is completely dry.

Empty cans shall be disposed of through normal garbage/sanitation system or recycled.

4. Theft Prevention Outside Sale Areas

LEI and TM personnel share a responsibility for monitoring all timber and forest products removal activity occurring within the boundaries of the National Forest System. This includes the responsibility for administration of NFS forest products permits, monitoring tribal gathering on NFS

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lands, awareness of commercial timber sales occurring on other ownerships adjacent to NFS lands, and reporting any suspicious circumstances or suspected violations involving the cutting or removal of trees or timber.

Timber theft or trespass can occur outside the sale area:

- Check to see if landline boundaries are posted, if private land or state land is adjacent to National Forest System lands.
- Consider GPS and traverse unit boundaries for permit record.
- Recon the sale area boundary, to determine if there is a risk of trespass; i.e., boundary line difficult to follow, not enough paint on the boundary line trees, stump marks painted low, and presence of species of high value.
- Types of theft and tree damage not associated with timber sale contracts:
 1. Cutting of sawtimber, firewood, Christmas trees, for resale.
 2. Theft associated with special use permits.
 3. Cutting of trees to facilitate general uses such as hunting and camping.
 4. Other forest products such as balsam boughs.
 5. Cutting from other ownerships onto National Forest System lands (trespass).

If Forest Officers observe what is perceived to be a violation of the exercise of treaty-protected gathering rights, the matter is to be referred to the proper tribal authorities, i.e. tribal Resource Management or Conservation Departments, or Great Lakes Indian Fish & Wildlife Commission (GLIFWC) Conservation Wardens. Forest Officers will identify the individual(s) and request their tribal identification or enrollment card, and ascertain if a tribal permit has been issued prior to making the referral.

Suspicious activity occurring on other ownerships, such as state, county or tribal lands within the National Forest boundaries, will be promptly reported to the Forest Service LEO for referral to the appropriate investigating agency.

Prior to beginning work on other non-timber sale contracts such as tree planting and TSI contracts, a pre-work meeting is held by the appropriate government official and the contractor or their representative. When the contract work has potential for timber theft or defrauding of the government, the appropriate LEO will receive a documented invitation to attend the meeting. The LEO is encouraged to visit the work area independently or with regular contract inspection personnel.

If timber trespass is not associated with a Forest Service timber sale or permit; LEI will conduct an investigation to determine if criminal or administrative procedures or a combination of both shall be taken. LEI will brief the responsible Line Officer, Timber Staff Officer and Contracting Officer on findings and recommended actions. LEI will take the lead if criminal action is pursued. The Line Officer will take the lead on administrative procedures.

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ACCOUNTABILITY (Program Review and Audits; Reference R9 TTPP, 05/2018, Pages 9-11)

Responsibility (Reference FSH 2409.15 chapter 28 & FSM 2452.41)

It is the responsibility of the Forest Supervisor and the Timber Sale Contracting Officer to ensure that the timber accountability audit action plans are completed and implemented. See FSH 2409.15, Chapter 28 for complete information.

The Forest will conduct log accountability audits on each zone at least every two years. Team makeup will include at a minimum a member from Timber Management, Law Enforcement and the Forest Resource Specialist.

The timber sale administration teams from all Districts will meet annually with the Forest Contracting Officer and key Line positions to review issues, concerns and new policies and procedures. The primary intent will be to assure uniform and appropriate contract administration procedures are being done across the Forest that result in harvest operations in compliance with the contract.

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APPENDICES

- A. Timber Trespass Guidelines & Procedures for the ONF**
- B. Timber Trespass Guidelines Matrix for the ONF**
- C. Guidelines for Determining Timber Value in Timber Trespass Cases for the ONF**

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Appendix A

TIMBER TRESPASS GUIDELINES & PROCEDURES FOR THE OTTAWA NATIONAL FOREST

The following "GUIDELINES" have been developed to attain consistent application of laws and regulations and subsequent criminal justice actions for unauthorized or illegal cutting of trees on National Forest Systems lands in the North Central Zone (MI).

There are two objectives for coordination between TM staff and LEI personnel. First, to ensure cooperation before and during investigations of unauthorized cutting and excessive damage; and second, to ensure appropriate actions are taken regarding contractual obligations, while preserving options for criminal and civil remedies, where appropriate. All incidents involving the cutting of trees or timber outside the scope of the provisions of the appropriate contract or permit will be dealt with using the standard of strict liability: appropriate law enforcement action will be taken in every case, even when contractual remedies are in place.

All Forest Service employees have the responsibility for and are required to notify LEI when undesignated timber is cut or damaged, or resource damage has occurred. This notification to LEI must be within 48 hours of discovery. If willful theft or damages are suspected, notification will be within 24 hours. ALL CUTTING OF UNDESIGNATED TIMBER WILL BE REPORTED.

Unauthorized and/or illegal cutting and/or damage on National Forest System lands may consist of one or more of the following:

- Randomly cutting trees that are not under permits or contract. This may include cutting or removal of firewood, Christmas trees, saw timber, individual high value trees, other special forest products, clearing for unauthorized access, overlap from state, county or private timber sales.
- Trees cut beyond timber sale or payment unit boundaries.
- Timber sale or payment unit boundary line tree(s) cut.
- Reserve trees or Protected Areas cut within payment units.
- Non-designated or leave trees cut within units.
- Excessive trees cut or unnecessarily damaged during skid and/or haul road construction.
- Landing Areas constructed larger than required and/or authorized.
- Cutting of Forest Service property boundary lines, witness trees, etc.

TREES NOT UNDER CONTRACT OR PERMIT

In situations where cutting of trees has occurred on National Forest System land and there is no contract or permit authorizing the cutting, the Forest Officer will immediately notify the District Ranger and/or Timber Management Assistant (TMA) to verify that a trespass exists. Upon verification, LEI will be notified and the Patrol Captain will initiate a preliminary investigation. TM will determine the total number of trees, volume and value of trees illegally cut or damaged and number of acres. "Value" will be based on current fair market value or mill delivered rates. The Natural Resource Valuation Table found in the Collateral Forfeiture Schedule for the Western District of Michigan may be used for incidental amounts of timber or forest products restitution.

Upon conclusion of the investigation and identification of the individual(s) responsible for the violation, appropriate criminal action will be initiated in addition to the collection of restitution.

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Appendix A (continued)

TREES UNDER CONTRACT OR PERMIT

Upon discovery of illegal cutting or associated resource damage in areas under contract or permit, the Forest Service Representative, Sale Administrator or Harvest Inspector shall:

1. As soon as possible, determine the "extent" (number) of trees cut or damage. This will require checking the entire area since the last sale inspection. Photograph the area if possible.
2. Document all individuals on site, date, time, and any other observation and actions in the inspection report.
3. Initially, do not notify the Purchaser of your findings unless serious resource damage is occurring due to the current cutting practices. In this situation, the cutting or entire logging operation may be suspended and/or shut down by the Contracting Officer, including suspension of hauling any timber from the landing. Notify the District TMA/CO and LEI of your findings. District TMA/CO will notify Forest Timber Staff/CO in the Forest Supervisor's Office.
4. The Law Enforcement Officer and Timber Contracting Officer will contact the responsible cutter and determine, based on cutter's explanation, if trees were unintentionally, negligently, or willfully cut.

If tree(s) are cut outside the sale or unit boundary, cutting may have been by mistake (BT 3.42/DT.4.2). For example, if existing boundary lines were in poor condition and could not be readily followed, distance between marked boundary trees too great (which may cause some confusion) or some boundary trees were covered completely by snow.

A good indication that the cutter knew that trees were cut outside the boundary is when the individual begins making excuses for their actions, such as: "Well, I figured that tree was going to die soon", or "the tree was leaning and about to fall over and would just go to waste."

Negligence on the part of the cutter should not be considered as a mistake.

5. Document in the inspection report what existing facts the decision was based on to determine whether the cutting was unintentional, negligent, or willful.

6. COURSE OF ACTION

- TM will be responsible in determining the number, location (timber sale name, lat and long), volume and value of tree(s) cut, number of acres, and GPS (if needed). This information will be provided to LEI.
- LEI will conduct a preliminary investigation, interviews, and prepare the Supplemental Incident Report (FS 5300-22).
- After the investigation is complete, LEI will relate findings to TM.
- All contractual remedies will be the decision of the Contracting Officer.
- Cutting or damage of all undesignated timber will be recorded on an Incident Report (FS 5300-1).

TIMBER THEFT PREVENTION PLAN
OTTAWA NATIONAL FOREST

Appendix A (continued)

CRIMINAL, CONTRACTUAL, ADMINISTRATIVE, and CIVIL REMEDIES

1. Negligent or willful cutting, damaging, or removal will result in a criminal action.
2. Undesignated timber unnecessarily damaged or negligently or willfully cut (BT3.44/DT.4.4) may be addressed under the contract, including breach, suspension, and payment of liquidated damages (BT 3.45/DT.4.5). Merchantable trees run over, pushed over or otherwise damaged by timber harvesting equipment in order to circumvent adherence to the "additional timber" policy will be dealt with as a criminal violation in addition to the contractual remedies.
3. Administrative action may be appropriate in addition to any criminal, civil or contractual action taken. The Regional Forester may cancel the timber sale contract for continued violation of terms, for conviction of criminal violation, and in some cases, civil violation of environmental laws (36 CFR 223.116 and FSH 2409.15 sec.37). Purchaser or individuals may also be debarred for causes such as conviction or civil judgment for theft (2 CFR 180.800)

Unintentional (Mistake): Inform Purchaser of the incident and proceed as provided for under BT3.42/DT.4.2 & BT3.43/DT.4.3. If included by the Contracting Officer; the timber will be paid for at current contract rates and required deposits. Also consider what actions are necessary by the Forest Service to prevent future incidents from occurring: i.e. re-painting boundary line or designated timber, correction on sale area map, and/or improve marking procedures.

Careless/Negligent: A violation notice/warning will be issued. As provided for under BT3.44/DT.4.4; the Contracting Officer will bill purchaser for liquidated damages. If included by the Contracting Officer; the timber will be paid for at current contract rates and required deposits. Inform the purchaser of the incident and billing for the tree(s) cut or damaged.

Willful: Willful conduct implies a criminal act or omission. A violation notice and/or criminal complaint will be issued to the cutter, logging company or Purchaser as appropriate. Inform the Purchaser of the incident and of your actions. As provided for under BT3.44/DT.4.4; the Contracting Officer will bill purchaser for liquidated damages. If included by the Contracting Officer; the timber will be paid for at current contract rates and required deposits. Inform the purchaser of the incident and billing for the tree(s) cut or damaged. Most cases will require a mandatory referral to the Assistant Special Agent in Charge for regional case opening and assignment.

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Appendix B

TIMBER TRESPASS GUIDELINES FOR THE OTTAWA NATIONAL FOREST

	UNINTENTIONAL		NEGLIGENT		WILLFUL	
	WITH CONTRACT /PERMIT	WITHOUT CONTRACT/PERMIT	WITH CONTRACT /PERMIT	WITHOUT CONTRACT/PERMIT	WITH CONTRACT /PERMIT	WITHOUT CONTRACT/PERMIT
REPORTING	5300-1	5300-1	5300-1/22	5300-1/22	5300-1/22	5300-1/22
REFER TO LEO	WITHIN 48 HRS	WITHIN 48 HRS	WITHIN 48 HRS	WITHIN 48 HRS	WITHIN 24 HRS	WITHIN 24 HRS
SECURE SITE	TM DISCRETION	TM & LE	TM & LE	TM & LE	LE ONLY	LE ONLY
DETERMINATION	TM DISCRETION	TM & LE	TM & LE	TM & LE	LE ONLY	LE ONLY
DAMAGE ASSESS	SIMPLE STUMPAGE	SIMPLE STUMPAGE	PER LIQ DAMAGES	PER MARKET VALUE	PER LIQ DAMAGES	PER MARKET VALUE
REFER TO ASAC	NO	NO	NO	ONLY > \$5,000	YES	YES
CRIM ACTION	TM/LE DISCRETION	TM/LE DISCRETION	VIOL NOTICE	VIOL NOTICE	CRIM COMPLAINT	CRIM COMPLAINT
RECOVERY	PER CONTRACT	BILL FOR COLLECTION	PER CONTRACT	BILL OR RESTITUTION	RESTITUTION OR CIVIL LITIGATION	RESTITUTION OR CIVIL LITIGATION
D E F I N I T I O N S	<u>UNINTENTIONAL</u> TIMBER TRESPASS IS DEFINED AS THE UNLAWFUL CUTTING OF TIMBER "BY MISTAKE", I.E., THE ACCIDENTAL CUTTING OF UNDESIGNATED TIMBER OR TIMBER OUTSIDE THE SCOPE OF A PERMIT OR TIMBER SALE CONTRACT <u>WHEREIN AN ERROR, ACT OR OMISSION MADE BY THE GOVERNMENT CONTRIBUTED TO THE UNLAWFUL CUTTING.</u> IN GENERAL, THE OFFENDING PARTY WILL NOT BE HELD CRIMINALLY LIABLE AND ALL ACTIONS TAKEN SHALL BE ADMINISTRATIVE. DAMAGES SHALL BE RECOVERED AT THE RATES SET FORTH IN THE TIMBER SALE CONTRACT OR PERMIT. IN THE ABSENCE OF A CONTRACT OR PERMIT, DAMAGES SHALL BE RECOVERED BY THE ISSUANCE OF A BILL FOR COLLECTION FOR SIMPLE STUMPAGE RATES (CURRENT BASE PRICE PLUS THE 15% ROLL BACK).		<u>NEGLIGENT</u> TIMBER TRESPASS IS DEFINED AS THE UNLAWFUL CUTTING OF TIMBER WITHOUT THE REQUISITE INTENT OF A CRIMINAL ACT, <u>WHEREIN THE EXERCISE OF APPROPRIATE DUE DILIGENCE AND/OR SOUND BUSINESS PRACTICES COULD HAVE PREVENTED THE UNLAWFUL CUTTING.</u> IN GENERAL, THE OFFENDING PARTY WILL BE HELD TO A STANDARD OF STRICT LIABILITY UNDER 36 CFR, PART 261. ALL OFFENSES WILL BE DEALT WITH AS AN "ENFORCEMENT ACTION" WITH THE ISSUANCE OF A VIOLATION NOTICE. LIQUIDATED DAMAGES SHALL BE RECOVERED AT RATES SET FORTH IN THE TIMBER SALE CONTRACT OR PERMIT. IN THE ABSENCE OF A CONTRACT OR PERMIT, DAMAGES SHALL BE ASSESSED AT FAIR MARKET VALUE OR "VALUE-ADDED" FOR THE PRODUCT IN THE PLACE AND CONDITION AT WHICH IT IS FOUND. RECOVERY MAY BE MADE THROUGH THE ISSUANCE OF A BILL FOR COLLECTION OR MAY BE MADE AS COURT-ORDERED RESTITUTION.		<u>WILLFUL</u> TIMBER TRESPASS IS DEFINED AS THE UNLAWFUL CUTTING OF ANY TIMBER OR TREE <u>WITH THE INTENT TO WILLFULLY STEAL FROM OR DEFRAUD THE UNITED STATES OR DAMAGE PROPERTY BELONGING TO THE UNITED STATES.</u> A PRELIMINARY CRIMINAL INVESTIGATION WILL BE INITIATED BY THE PATROL CAPTAIN, THE FINDINGS OF WHICH SHALL BE REFERRED TO THE ASAC THROUGH THE PATROL COMMANDER WITHIN 24 HOURS. THE PATROL CAPTAIN WILL IS RESPONSIBLE FOR PRESERVING AND PROTECTING EVIDENCE UNTIL A CRIMINAL INVESTIGATOR IS ASSIGNED TO THE CASE. CRIMINAL DISPOSITION OF THE CASE WILL BE AT THE DISCRETION OF THE U.S. ATTORNEY'S OFFICE. DAMAGE RECOVERY SHALL BE ASSESSED AT FAIR MARKET VALUE OR "VALUE-ADDED" FOR THE PRODUCT IN THE PLACE AND CONDITION AT WHICH IT IS FOUND. RECOVERY MAY BE MADE THROUGH COURT-ORDERED RESTITUTION PURSUANT TO THE CRIMINAL OFFENSE OR BY SEPARATE CIVIL ACTION.	

TIMBER THEFT PREVENTION PLAN
OTTAWA NATIONAL FOREST*Appendix C*GUIDELINES FOR DETERMINING TIMBER VALUES IN TIMBER TRESPASS CASES
FOR THE OTTAWA NATIONAL FOREST

Forest Service Handbook 2409.18 provides the following direction for trespass appraisals: "Determine civil damages resulting from a trespass based on the market value of the timber cut or damaged, plus any other damage the Government may have suffered as a result of the trespass. In addition, assess timber property values."

FSH 2409.18 defines timber property value as "the cost of manufacture from the standing tree to the state of manufacture where the sale is made, which is usually in decks." "In trespass cases where timber is found at a mill, add transportation value and an estimated value for unloading." In other words timber property value is the added value resulting from the manufacturing process. The timber property or added value will vary depending on the point along the manufacturing process at which a trespass is discovered or reported.

More simply stated, civil damages in a trespass case are comprised of the market value of the standing timber (stumpage without the roll back factor) plus timber property value (the added value resulting from manufacture) plus any other damage the Government may have suffered. The examples that follow are intended as guidelines to be used for determining the appropriate value of timber when calculating civil damages in a trespass case. The guidelines are to be used when the trespass does not involve a Forest Service contract or permit. The guidelines are not intended to modify or replace any direction set forth in the Eastern Region or Ottawa National Forest Timber Theft Prevention Plans. They are intended to supplement timber theft prevention plans by setting forth a consistent manner in which to calculate the value of timber cut in trespass. The timber value will vary depending on the species, products, and the point in the manufacturing process (the added value) at which the trespass is discovered or reported.

Example 1 – Forest Service is unable to recover the timber.

Civil damages should be based on delivered log price anytime the Forest Service is unable to recover timber cut in trespass.

A logger operating a sale on private land adjacent to National Forest land crosses the property line and cuts, removes and delivers the logs to a mill. The trespass is not discovered until sometime later. In this situation the Forest Service is unable to recover the timber. The fair market value (the value established in a transaction between a willing buyer and a willing seller) is normally considered to be the delivered log price (the price that the logger is paid by the mill for delivering logs to the mill). The delivered log price includes stumpage plus the added values of stump to deck logging costs, haul costs (includes load and unload), and profit and risk. For example, if a logger were paid \$90 per cord by the mill, the separate components might look something like the following:

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$$\begin{array}{rcllcl}
 \text{Stumpage} & \text{Stump to deck} & \text{Haul} & \text{Profit \& risk} & \text{Fair Market Value} \\
 \$30/\text{cord} & + \$20/\text{cord} & + \$30/\text{cord} & + \$10/\text{cord} & = \text{(Delivered log price)} \\
 & & & & \$90/\text{cord}
 \end{array}$$

It is possible, with help from LEI if necessary, to find out from the mill what the logger was paid for the actual timber cut in trespass, or at least what the mill is paying for similar species/products. This is the preferred method of establishing the fair market value. If for some reason it is not possible, the appraiser may have to construct the fair market value based on estimated costs of the separate components but since we do not track cost for cutting, skidding and haul, the appraiser must be able to justify their figures. If they appraise too low the government is harmed. If they appraise too high it could result in having to explain to a judge where those value were derived. Without cost collect process in place it would be very hard to explain.

Example 2 – Forest Service is able to recover the timber.

Civil damages should be based on stumpage anytime the Forest Service is able to recover timber cut in trespass.

A logger operating a sale on private land adjacent to National Forest land crosses the property line and cuts, limbs, skids and decks the logs on a landing when the trespass is discovered. In this instance since logs are still on the landing and the Forest Service is able to recover them, the fair market value is not the delivered log price. The fair market value in this case is the cost of stumpage with the roll back included plus the added value of processing the trees, and skidding and decking the logs. For example:

$$\begin{array}{rcl}
 \text{Stumpage} & \text{Stump to deck} & \text{Fair market value} \\
 \$30/\text{cord} & + \$20/\text{cord} & = \$50/\text{cord}
 \end{array}$$

Because the Forest Service still has the timber and the opportunity to dispose of it, the appropriate civil damage for the timber in this situation is \$30/cord; i.e. stumpage. The effective cost to the logger equates to the fair market value because in addition to the \$30/cord civil damages, he has also incurred a \$20/cord out-of-pocket cost that he will not be able to recover.

The decked wood should be disposed of by offering competitively at an advertised rate of its fair market value of \$50/cord. Under rare and unusual circumstances it may be in the Government's interest to sell the decked wood directly to the trespasser. The trespasser should be charged the fair market value, \$50/cord, which is in addition to the \$30/cord civil damage.

By assessing civil damages based on processes outlined in the above examples, an incentive is provided for the "honest" trespasser to report the trespass as soon as they realize that they have encroached on federal lands. Using the two situations presented above, in the first situation the trespasser is out \$90/cord while in the second situation the trespasser loses \$50/cord.

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Other things to consider when determining civil damages.

Other damage that the Government could suffer as a result of a trespass may include but is not limited to the following:

- Cost of treating slash.
- Cost of erosion control work.
- Cost of road maintenance.
- Value of dead or severely damaged trees.
- Cost of reforestation.
- Salary costs related to determining civil damages.

Depending on the situation, it may be possible to have the trespasser perform some or all of the work necessary to fix or mitigate the resource damage, and thereby reduce the amount of civil damages. If not, the person calculating the civil damages will have to make justifiable estimates of the costs to do the work.

Standard rates will normally be used for the value of trees damaged beyond recovery, and for stumpage in situations when the Forest Service is able to recover timber cut in trespass. The standard rate is determined by dividing the most recently published TEV base period by 0.85. For example, using the current base period price for aspen pulpwood of \$34.20 per CCF, the standard rate is calculated as follows:

Standard rate = $\$34.20 / 0.85 = \40.24 per CCF

The written report that details how civil damages were calculated will be reviewed by the Forest Timber Sale Contracting Officer prior to being presented to the court.

"REGISTER OF WAGE DETERMINATIONS UNDER THE SERVICE CONTRACT ACT By direction of the Secretary of Labor		U.S. DEPARTMENT OF LABOR EMPLOYMENT STANDARDS ADMINISTRATION WAGE AND HOUR DIVISION WASHINGTON D.C. 20210
Daniel W. Simms Director	Division of Wage Determinations	Wage Determination No.: 2015-4871 Revision No.: 31 Date Of Last Revision: 12/03/2025

State: Michigan

Area: Michigan Counties of Alger, Baraga, Chippewa, Delta, Dickinson, Gogebic, Houghton, Iron, Keweenaw, Luce, Mackinac, Marquette, Menominee, Ontonagon, Schoolcraft

****Fringe Benefits Required Follow the Occupational Listing****

OCCUPATION CODE - TITLE	FOOTNOTE	RATE
01000 - Administrative Support And Clerical Occupations		
01011 - Accounting Clerk I		17.24
01012 - Accounting Clerk II		19.35
01013 - Accounting Clerk III		21.64
01020 - Administrative Assistant		26.19
01035 - Court Reporter		21.91
01041 - Customer Service Representative I		14.75
01042 - Customer Service Representative II		16.10
01043 - Customer Service Representative III		18.07
01051 - Data Entry Operator I		16.90
01052 - Data Entry Operator II		18.44
01060 - Dispatcher, Motor Vehicle		20.25
01070 - Document Preparation Clerk		16.20
01090 - Duplicating Machine Operator		16.20
01111 - General Clerk I		15.45
01112 - General Clerk II		16.87
01113 - General Clerk III		18.93
01120 - Housing Referral Assistant		22.68
01141 - Messenger Courier		15.72
01191 - Order Clerk I		18.38
01192 - Order Clerk II		20.06
01261 - Personnel Assistant (Employment) I		18.90
01262 - Personnel Assistant (Employment) II		21.14
01263 - Personnel Assistant (Employment) III		23.56
01270 - Production Control Clerk		30.55
01290 - Rental Clerk		17.87
01300 - Scheduler, Maintenance		18.18
01311 - Secretary I		18.18
01312 - Secretary II		20.34
01313 - Secretary III		22.68
01320 - Service Order Dispatcher		18.10
01410 - Supply Technician		26.19
01420 - Survey Worker		20.20
01460 - Switchboard Operator/Receptionist		16.75
01531 - Travel Clerk I		16.20
01532 - Travel Clerk II		17.89
01533 - Travel Clerk III		20.06
01611 - Word Processor I		16.20
01612 - Word Processor II		18.18
01613 - Word Processor III		20.34
05000 - Automotive Service Occupations		

05005 - Automobile Body Repairer, Fiberglass	22.44
05010 - Automotive Electrician	21.91
05040 - Automotive Glass Installer	20.98
05070 - Automotive Worker	20.98
05110 - Mobile Equipment Servicer	18.81
05130 - Motor Equipment Metal Mechanic	22.83
05160 - Motor Equipment Metal Worker	20.98
05190 - Motor Vehicle Mechanic	22.83
05220 - Motor Vehicle Mechanic Helper	17.68
05250 - Motor Vehicle Upholstery Worker	19.91
05280 - Motor Vehicle Wrecker	20.98
05310 - Painter, Automotive	21.91
05340 - Radiator Repair Specialist	20.98
05370 - Tire Repairer	18.81
05400 - Transmission Repair Specialist	22.83
07000 - Food Preparation And Service Occupations	
07010 - Baker	14.40
07041 - Cook I	16.93
07042 - Cook II	18.88
07070 - Dishwasher	12.78
07130 - Food Service Worker	14.28
07210 - Meat Cutter	18.03
07260 - Waiter/Waitress	16.49
09000 - Furniture Maintenance And Repair Occupations	
09010 - Electrostatic Spray Painter	29.01
09040 - Furniture Handler	20.71
09080 - Furniture Refinisher	29.01
09090 - Furniture Refinisher Helper	23.62
09110 - Furniture Repairer, Minor	26.44
09130 - Upholsterer	29.01
11000 - General Services And Support Occupations	
11030 - Cleaner, Vehicles	14.99
11060 - Elevator Operator	16.35
11090 - Gardener	20.48
11122 - Housekeeping Aide	16.35
11150 - Janitor	16.35
11210 - Laborer, Grounds Maintenance	16.84
11240 - Maid or Houseman	14.47
11260 - Pruner	15.80
11270 - Tractor Operator	19.24
11330 - Trail Maintenance Worker	16.84
11360 - Window Cleaner	17.42
12000 - Health Occupations	
12010 - Ambulance Driver	17.22
12011 - Breath Alcohol Technician	25.20
12012 - Certified Occupational Therapist Assistant	34.13
12015 - Certified Physical Therapist Assistant	27.46
12020 - Dental Assistant	21.63
12025 - Dental Hygienist	39.55
12030 - EKG Technician	31.92
12035 - Electroneurodiagnostic Technologist	31.92
12040 - Emergency Medical Technician	17.22
12071 - Licensed Practical Nurse I	22.53
12072 - Licensed Practical Nurse II	25.20
12073 - Licensed Practical Nurse III	28.11
12100 - Medical Assistant	17.87
12130 - Medical Laboratory Technician	30.23
12160 - Medical Record Clerk	20.22
12190 - Medical Record Technician	22.62
12195 - Medical Transcriptionist	22.53
12210 - Nuclear Medicine Technologist	55.39
12221 - Nursing Assistant I	13.82
12222 - Nursing Assistant II	15.55
12223 - Nursing Assistant III	16.97
12224 - Nursing Assistant IV	19.05

12235 - Optical Dispenser	18.51
12236 - Optical Technician	22.53
12250 - Pharmacy Technician	18.47
12280 - Phlebotomist	17.84
12305 - Radiologic Technologist	32.09
12311 - Registered Nurse I	25.44
12312 - Registered Nurse II	31.12
12313 - Registered Nurse II, Specialist	31.12
12314 - Registered Nurse III	37.65
12315 - Registered Nurse III, Anesthetist	37.65
12316 - Registered Nurse IV	45.14
12317 - Scheduler (Drug and Alcohol Testing)	31.23
12320 - Substance Abuse Treatment Counselor	27.42
13000 - Information And Arts Occupations	
13011 - Exhibits Specialist I	17.97
13012 - Exhibits Specialist II	22.26
13013 - Exhibits Specialist III	27.23
13041 - Illustrator I	17.97
13042 - Illustrator II	22.26
13043 - Illustrator III	27.23
13047 - Librarian	24.66
13050 - Library Aide/Clerk	14.34
13054 - Library Information Technology Systems Administrator	22.26
13058 - Library Technician	18.32
13061 - Media Specialist I	16.07
13062 - Media Specialist II	17.97
13063 - Media Specialist III	20.04
13071 - Photographer I	17.13
13072 - Photographer II	19.16
13073 - Photographer III	23.75
13074 - Photographer IV	29.05
13075 - Photographer V	35.14
13090 - Technical Order Library Clerk	17.85
13110 - Video Teleconference Technician	19.45
14000 - Information Technology Occupations	
14041 - Computer Operator I	18.37
14042 - Computer Operator II	20.55
14043 - Computer Operator III	22.90
14044 - Computer Operator IV	25.47
14045 - Computer Operator V	28.19
14071 - Computer Programmer I	22.74
14072 - Computer Programmer II	
14073 - Computer Programmer III	(see 1)
14074 - Computer Programmer IV	(see 1)
14101 - Computer Systems Analyst I	
14102 - Computer Systems Analyst II	(see 1)
14103 - Computer Systems Analyst III	(see 1)
14150 - Peripheral Equipment Operator	18.37
14160 - Personal Computer Support Technician	25.47
14170 - System Support Specialist	28.19
15000 - Instructional Occupations	
15010 - Aircrew Training Devices Instructor (Non-Rated)	31.08
15020 - Aircrew Training Devices Instructor (Rated)	37.60
15030 - Air Crew Training Devices Instructor (Pilot)	45.09
15050 - Computer Based Training Specialist / Instructor	31.08
15060 - Educational Technologist	33.46
15070 - Flight Instructor (Pilot)	45.09
15080 - Graphic Artist	22.64
15085 - Maintenance Test Pilot, Fixed, Jet/Prop	45.09
15086 - Maintenance Test Pilot, Rotary Wing	45.09
15088 - Non-Maintenance Test/Co-Pilot	45.09
15090 - Technical Instructor	22.96
15095 - Technical Instructor/Course Developer	28.08
15110 - Test Proctor	18.54

15120 - Tutor	18.54
16000 - Laundry, Dry-Cleaning, Pressing And Related Occupations	
16010 - Assembler	18.46
16030 - Counter Attendant	18.46
16040 - Dry Cleaner	21.10
16070 - Finisher, Flatwork, Machine	18.46
16090 - Presser, Hand	18.46
16110 - Presser, Machine, Drycleaning	18.46
16130 - Presser, Machine, Shirts	18.46
16160 - Presser, Machine, Wearing Apparel, Laundry	18.46
16190 - Sewing Machine Operator	21.97
16220 - Tailor	22.85
16250 - Washer, Machine	19.34
19000 - Machine Tool Operation And Repair Occupations	
19010 - Machine-Tool Operator (Tool Room)	25.07
19040 - Tool And Die Maker	29.34
21000 - Materials Handling And Packing Occupations	
21020 - Forklift Operator	23.32
21030 - Material Coordinator	30.55
21040 - Material Expediter	30.55
21050 - Material Handling Laborer	17.92
21071 - Order Filler	15.48
21080 - Production Line Worker (Food Processing)	23.32
21110 - Shipping Packer	19.66
21130 - Shipping/Receiving Clerk	19.66
21140 - Store Worker I	18.61
21150 - Stock Clerk	22.51
21210 - Tools And Parts Attendant	23.32
21410 - Warehouse Specialist	23.32
23000 - Mechanics And Maintenance And Repair Occupations	
23010 - Aerospace Structural Welder	32.23
23019 - Aircraft Logs and Records Technician	27.09
23021 - Aircraft Mechanic I	30.96
23022 - Aircraft Mechanic II	32.23
23023 - Aircraft Mechanic III	33.53
23040 - Aircraft Mechanic Helper	24.35
23050 - Aircraft, Painter	29.71
23060 - Aircraft Servicer	27.09
23070 - Aircraft Survival Flight Equipment Technician	29.71
23080 - Aircraft Worker	28.46
23091 - Aircrew Life Support Equipment (ALSE) Mechanic I	28.46
23092 - Aircrew Life Support Equipment (ALSE) Mechanic II	30.96
23110 - Appliance Mechanic	29.44
23120 - Bicycle Repairer	23.87
23125 - Cable Splicer	48.23
23130 - Carpenter, Maintenance	24.65
23140 - Carpet Layer	28.19
23160 - Electrician, Maintenance	31.17
23181 - Electronics Technician Maintenance I	37.75
23182 - Electronics Technician Maintenance II	39.44
23183 - Electronics Technician Maintenance III	41.09
23260 - Fabric Worker	26.75
23290 - Fire Alarm System Mechanic	30.67
23310 - Fire Extinguisher Repairer	25.28
23311 - Fuel Distribution System Mechanic	42.90
23312 - Fuel Distribution System Operator	35.80
23370 - General Maintenance Worker	21.75
23380 - Ground Support Equipment Mechanic	30.96
23381 - Ground Support Equipment Servicer	27.09
23382 - Ground Support Equipment Worker	28.46
23391 - Gunsmith I	25.28
23392 - Gunsmith II	28.19
23393 - Gunsmith III	30.67

23410 - Heating, Ventilation And Air-Conditioning Mechanic	24.68
23411 - Heating, Ventilation And Air Contidioning Mechanic (Research Facility)	25.70
23430 - Heavy Equipment Mechanic	29.19
23440 - Heavy Equipment Operator	27.10
23460 - Instrument Mechanic	30.67
23465 - Laboratory/Shelter Mechanic	29.44
23470 - Laborer	17.92
23510 - Locksmith	29.44
23530 - Machinery Maintenance Mechanic	33.67
23550 - Machinist, Maintenance	23.38
23580 - Maintenance Trades Helper	18.20
23591 - Metrology Technician I	30.67
23592 - Metrology Technician II	31.94
23593 - Metrology Technician III	33.21
23640 - Millwright	34.79
23710 - Office Appliance Repairer	28.28
23760 - Painter, Maintenance	21.85
23790 - Pipefitter, Maintenance	33.19
23810 - Plumber, Maintenance	31.85
23820 - Pneudraulic Systems Mechanic	30.67
23850 - Rigger	30.67
23870 - Scale Mechanic	28.19
23890 - Sheet-Metal Worker, Maintenance	29.30
23910 - Small Engine Mechanic	22.09
23931 - Telecommunications Mechanic I	28.58
23932 - Telecommunications Mechanic II	29.76
23950 - Telephone Lineman	28.38
23960 - Welder, Combination, Maintenance	23.30
23965 - Well Driller	27.85
23970 - Woodcraft Worker	30.67
23980 - Woodworker	25.28
24000 - Personal Needs Occupations	
24550 - Case Manager	18.41
24570 - Child Care Attendant	13.61
24580 - Child Care Center Clerk	16.97
24610 - Chore Aide	15.85
24620 - Family Readiness And Support Services Coordinator	18.41
24630 - Homemaker	18.41
25000 - Plant And System Operations Occupations	
25010 - Boiler Tender	34.10
25040 - Sewage Plant Operator	28.74
25070 - Stationary Engineer	34.10
25190 - Ventilation Equipment Tender	26.49
25210 - Water Treatment Plant Operator	28.74
27000 - Protective Service Occupations	
27004 - Alarm Monitor	23.19
27007 - Baggage Inspector	17.46
27008 - Corrections Officer	29.31
27010 - Court Security Officer	25.18
27030 - Detection Dog Handler	19.53
27040 - Detention Officer	29.31
27070 - Firefighter	21.05
27101 - Guard I	17.46
27102 - Guard II	19.53
27131 - Police Officer I	26.84
27132 - Police Officer II	29.83
28000 - Recreation Occupations	
28041 - Carnival Equipment Operator	15.63
28042 - Carnival Equipment Repairer	16.64
28043 - Carnival Worker	12.84
28210 - Gate Attendant/Gate Tender	21.33
28310 - Lifeguard	16.87

28350 - Park Attendant (Aide)	23.85
28510 - Recreation Aide/Health Facility Attendant	17.41
28515 - Recreation Specialist	29.55
28630 - Sports Official	19.00
28690 - Swimming Pool Operator	18.55
29000 - Stevedoring/Longshoremen Occupational Services	
29010 - Blocker And Bracer	30.44
29020 - Hatch Tender	30.44
29030 - Line Handler	30.44
29041 - Stevedore I	28.89
29042 - Stevedore II	31.79
30000 - Technical Occupations	
30010 - Air Traffic Control Specialist, Center (HFO) (see 2)	46.07
30011 - Air Traffic Control Specialist, Station (HFO) (see 2)	31.77
30012 - Air Traffic Control Specialist, Terminal (HFO) (see 2)	34.99
30021 - Archeological Technician I	19.90
30022 - Archeological Technician II	22.26
30023 - Archeological Technician III	27.57
30030 - Cartographic Technician	27.57
30040 - Civil Engineering Technician	30.30
30051 - Cryogenic Technician I	30.54
30052 - Cryogenic Technician II	33.72
30061 - Drafter/CAD Operator I	19.90
30062 - Drafter/CAD Operator II	22.26
30063 - Drafter/CAD Operator III	24.81
30064 - Drafter/CAD Operator IV	30.54
30081 - Engineering Technician I	17.09
30082 - Engineering Technician II	19.18
30083 - Engineering Technician III	21.45
30084 - Engineering Technician IV	26.58
30085 - Engineering Technician V	32.51
30086 - Engineering Technician VI	39.33
30090 - Environmental Technician	24.88
30095 - Evidence Control Specialist	27.57
30210 - Laboratory Technician	24.81
30221 - Latent Fingerprint Technician I	30.54
30222 - Latent Fingerprint Technician II	33.72
30240 - Mathematical Technician	27.57
30361 - Paralegal/Legal Assistant I	21.37
30362 - Paralegal/Legal Assistant II	26.49
30363 - Paralegal/Legal Assistant III	32.39
30364 - Paralegal/Legal Assistant IV	39.18
30375 - Petroleum Supply Specialist	33.72
30390 - Photo-Optics Technician	27.57
30395 - Radiation Control Technician	33.72
30461 - Technical Writer I	27.57
30462 - Technical Writer II	33.72
30463 - Technical Writer III	40.80
30491 - Unexploded Ordnance (UXO) Technician I	29.28
30492 - Unexploded Ordnance (UXO) Technician II	35.43
30493 - Unexploded Ordnance (UXO) Technician III	42.46
30494 - Unexploded (UXO) Safety Escort	29.28
30495 - Unexploded (UXO) Sweep Personnel	29.28
30501 - Weather Forecaster I	30.54
30502 - Weather Forecaster II	37.15
30620 - Weather Observer, Combined Upper Air Or Surface Programs	(see 2) 24.81
30621 - Weather Observer, Senior	(see 2) 27.57
31000 - Transportation/Mobile Equipment Operation Occupations	
31010 - Airplane Pilot	35.43
31020 - Bus Aide	15.40
31030 - Bus Driver	19.82
31043 - Driver Courier	17.21
31260 - Parking and Lot Attendant	14.13
31290 - Shuttle Bus Driver	17.57

31310 - Taxi Driver	12.55
31361 - Truckdriver, Light	18.31
31362 - Truckdriver, Medium	19.38
31363 - Truckdriver, Heavy	23.90
31364 - Truckdriver, Tractor-Trailer	23.90
99000 - Miscellaneous Occupations	
99020 - Cabin Safety Specialist	17.27
99030 - Cashier	13.70
99050 - Desk Clerk	15.52
99095 - Embalmer	29.28
99130 - Flight Follower	29.28
99251 - Laboratory Animal Caretaker I	17.31
99252 - Laboratory Animal Caretaker II	18.42
99260 - Marketing Analyst	24.00
99310 - Mortician	29.28
99410 - Pest Controller	27.22
99510 - Photofinishing Worker	15.39
99710 - Recycling Laborer	24.94
99711 - Recycling Specialist	28.50
99730 - Refuse Collector	23.41
99810 - Sales Clerk	15.03
99820 - School Crossing Guard	16.18
99830 - Survey Party Chief	27.58
99831 - Surveying Aide	16.38
99832 - Surveying Technician	25.08
99840 - Vending Machine Attendant	15.96
99841 - Vending Machine Repairer	18.94
99842 - Vending Machine Repairer Helper	15.96

Note: Executive Order (EO) 13706, Establishing Paid Sick Leave for Federal Contractors, applies to all contracts subject to the Service Contract Act for which the contract is awarded (and any solicitation was issued) on or after January 1, 2017. If this contract is covered by the EO, the contractor must provide employees with 1 hour of paid sick leave for every 30 hours they work, up to 56 hours of paid sick leave each year. Employees must be permitted to use paid sick leave for their own illness, injury or other health-related needs, including preventive care; to assist a family member (or person who is like family to the employee) who is ill, injured, or has other health-related needs, including preventive care; or for reasons resulting from, or to assist a family member (or person who is like family to the employee) who is the victim of, domestic violence, sexual assault, or stalking. Additional information on contractor requirements and worker protections under the EO is available at www.dol.gov/whd/govcontracts.

Note: Executive Order 13658 generally applies to contracts subject to the Service Contract Act that were awarded on or between January 1, 2015 and January 29, 2022, and that have not been renewed or extended on or after January 30, 2022. If a contract is subject to Executive Order 13658, the contractor must pay all covered workers at least \$13.30 per hour (or the applicable wage rate listed on this wage determination, if it is higher) for all hours spent performing on the contract in 2025. The applicable Executive Order minimum wage rate will be adjusted annually. Additional information on contractor requirements and worker protections under Executive Order 13658 is available at www.dol.gov/whd/govcontracts.

ALL OCCUPATIONS LISTED ABOVE RECEIVE THE FOLLOWING BENEFITS:

HEALTH & WELFARE: \$5.55 per hour, up to 40 hours per week, or \$222.00 per week or \$962.00 per month

HEALTH & WELFARE EO 13706: \$5.09 per hour, up to 40 hours per week, or \$203.60 per week, or \$882.27 per month*

*This rate is to be used only when compensating employees for performance on an SCA-covered contract also covered by EO 13706, Establishing Paid Sick Leave for Federal Contractors. A contractor may not receive credit toward its SCA obligations for any paid sick leave provided pursuant to EO 13706.

VACATION: 2 weeks paid vacation after 1 year of service with a contractor or successor, 3 weeks after 5 years, and 4 weeks after 15 years. Length of service includes the whole span of continuous service with the present contractor or successor, wherever employed, and with the predecessor contractors in the performance of similar work at the same Federal facility. (Reg. 29 CFR 4.173)

HOLIDAYS: A minimum of eleven paid holidays per year: New Year's Day, Martin Luther King Jr.'s Birthday, Washington's Birthday, Memorial Day, Juneteenth National Independence Day, Independence Day, Labor Day, Columbus Day, Veterans' Day, Thanksgiving Day, and Christmas Day. (A contractor may substitute for any of the named holidays another day off with pay in accordance with a plan communicated to the employees involved.) (See 29 CFR 4.174)

THE OCCUPATIONS WHICH HAVE NUMBERED FOOTNOTES IN PARENTHESES RECEIVE THE FOLLOWING:

1) COMPUTER EMPLOYEES: This wage determination does not apply to any individual employed in a bona fide executive, administrative, or professional capacity, as defined in 29 C.F.R. Part 541. (See 41 C.F.R. 6701(3)). Because most Computer Systems Analysts and Computer Programmers who are paid at least \$27.63 per hour (or at least \$684 per week if paid on a salary or fee basis) likely qualify as exempt computer professionals under 29 U.S.C. 213(a)(1) and 29 U.S.C. 213(a)(17), this wage determination may not include wage rates for all occupations within those job families. In such instances, a conformance will be necessary if there are nonexempt employees in these job families working on the contract.

Job titles vary widely and change quickly in the computer industry, and are not determinative of whether an employee is an exempt computer professional. To be exempt, computer employees who satisfy the compensation requirements must also have a primary duty that consists of:

(1) The application of systems analysis techniques and procedures, including consulting with users, to determine hardware, software or system functional specifications;

(2) The design, development, documentation, analysis, creation, testing or modification of computer systems or programs, including prototypes, based on and related to user or system design specifications;

(3) The design, documentation, testing, creation or modification of computer programs related to machine operating systems; or

(4) A combination of the aforementioned duties, the performance of which requires the same level of skills. (29 C.F.R. 541.400).

Any computer employee who meets the applicable compensation requirements and the above duties test qualifies as an exempt computer professional under both section 13(a)(1) and section 13(a)(17) of the Fair Labor Standards Act. (Field Assistance Bulletin No. 2006-3 (Dec. 14, 2006)). Accordingly, this wage determination will not apply to any exempt computer employee regardless of which of these two exemptions is utilized.

2) AIR TRAFFIC CONTROLLERS AND WEATHER OBSERVERS - NIGHT PAY & SUNDAY PAY: If you work at night as part of a regular tour of duty, you will earn a night differential and receive an additional 10% of basic pay for any hours worked between 6pm and 6am. If you are a full-time employed (40 hours a week) and Sunday is part of your regularly scheduled workweek, you are paid at your rate of basic pay plus a Sunday premium of 25% of your basic rate for each hour of Sunday work which is not overtime

(i.e. occasional work on Sunday outside the normal tour of duty is considered overtime work).

**** HAZARDOUS PAY DIFFERENTIAL ****

An 8 percent differential is applicable to employees employed in a position that represents a high degree of hazard when working with or in close proximity to ordnance, explosives, and incendiary materials. This includes work such as screening, blending, dying, mixing, and pressing of sensitive ordnance, explosives, and pyrotechnic compositions such as lead azide, black powder and photoflash powder.

All dry-house activities involving propellants or explosives. Demilitarization, modification, renovation, demolition, and maintenance operations on sensitive ordnance, explosives and incendiary materials. All operations involving re-grading and cleaning of artillery ranges.

A 4 percent differential is applicable to employees employed in a position that represents a low degree of hazard when working with, or in close proximity to ordnance, (or employees possibly adjacent to) explosives and incendiary materials which involves potential injury such as laceration of hands, face, or arms of the employee engaged in the operation, irritation of the skin, minor burns and the like; minimal damage to immediate or adjacent work area or equipment being used. All operations involving, unloading, storage, and hauling of ordnance, explosive, and incendiary ordnance material other than small arms ammunition. These differentials are only applicable to work that has been specifically designated by the agency for ordnance, explosives, and incendiary material differential pay.

**** UNIFORM ALLOWANCE ****

If employees are required to wear uniforms in the performance of this contract (either by the terms of the Government contract, by the employer, by the state or local law, etc.), the cost of furnishing such uniforms and maintaining (by laundering or dry cleaning) such uniforms is an expense that may not be borne by an employee where such cost reduces the hourly rate below that required by the wage determination. The Department of Labor will accept payment in accordance with the following standards as compliance:

The contractor or subcontractor is required to furnish all employees with an adequate number of uniforms without cost or to reimburse employees for the actual cost of the uniforms. In addition, where uniform cleaning and maintenance is made the responsibility of the employee, all contractors and subcontractors subject to this wage determination shall (in the absence of a bona fide collective bargaining agreement providing for a different amount, or the furnishing of contrary affirmative proof as to the actual cost), reimburse all employees for such cleaning and maintenance at a rate of \$3.35 per week (or \$.67 cents per day). However, in those instances where the uniforms furnished are made of ""wash and wear"" materials, may be routinely washed and dried with other personal garments, and do not require any special treatment such as dry cleaning, daily washing, or commercial laundering in order to meet the cleanliness or appearance standards set by the terms of the Government contract, by the contractor, by law, or by the nature of the work, there is no requirement that employees be reimbursed for uniform maintenance costs.

**** SERVICE CONTRACT ACT DIRECTORY OF OCCUPATIONS ****

The duties of employees under job titles listed are those described in the ""Service Contract Act Directory of Occupations"", Fifth Edition (Revision 1), dated September 2015, unless otherwise indicated.

**** REQUEST FOR AUTHORIZATION OF ADDITIONAL CLASSIFICATION AND WAGE RATE, Standard Form 1444 (SF-1444) ****

Conformance Process:

The contracting officer shall require that any class of service employee which is not listed herein and which is to be employed under the contract (i.e., the work to

be performed is not performed by any classification listed in the wage determination), be classified by the contractor so as to provide a reasonable relationship (i.e., appropriate level of skill comparison) between such unlisted classifications and the classifications listed in the wage determination (See 29 CFR 4.6(b)(2)(i)). Such conforming procedures shall be initiated by the contractor prior to the performance of contract work by such unlisted class(es) of employees (See 29 CFR 4.6(b)(2)(ii)). The Wage and Hour Division shall make a final determination of conformed classification, wage rate, and/or fringe benefits which shall be paid to all employees performing in the classification from the first day of work on which contract work is performed by them in the classification. Failure to pay such unlisted employees the compensation agreed upon by the interested parties and/or fully determined by the Wage and Hour Division retroactive to the date such class of employees commenced contract work shall be a violation of the Act and this contract. (See 29 CFR 4.6(b)(2)(v)). When multiple wage determinations are included in a contract, a separate SF-1444 should be prepared for each wage determination to which a class(es) is to be conformed.

The process for preparing a conformance request is as follows:

- 1) When preparing the bid, the contractor identifies the need for a conformed occupation(s) and computes a proposed rate(s).
- 2) After contract award, the contractor prepares a written report listing in order the proposed classification title(s), a Federal grade equivalency (FGE) for each proposed classification(s), job description(s), and rationale for proposed wage rate(s), including information regarding the agreement or disagreement of the authorized representative of the employees involved, or where there is no authorized representative, the employees themselves. This report should be submitted to the contracting officer no later than 30 days after such unlisted class(es) of employees performs any contract work.
- 3) The contracting officer reviews the proposed action and promptly submits a report of the action, together with the agency's recommendations and pertinent information including the position of the contractor and the employees, to the U.S. Department of Labor, Wage and Hour Division, for review (See 29 CFR 4.6(b)(2)(ii)).
- 4) Within 30 days of receipt, the Wage and Hour Division approves, modifies, or disapproves the action via transmittal to the agency contracting officer, or notifies the contracting officer that additional time will be required to process the request.
- 5) The contracting officer transmits the Wage and Hour Division's decision to the contractor.
- 6) Each affected employee shall be furnished by the contractor with a written copy of such determination or it shall be posted as a part of the wage determination (See 29 CFR 4.6(b)(2)(iii)).

Information required by the Regulations must be submitted on SF-1444 or bond paper.

When preparing a conformance request, the ""Service Contract Act Directory of Occupations"" should be used to compare job definitions to ensure that duties requested are not performed by a classification already listed in the wage determination. Remember, it is not the job title, but the required tasks that determine whether a class is included in an established wage determination. Conformances may not be used to artificially split, combine, or subdivide classifications listed in the wage determination (See 29 CFR 4.152(c)(1))."